

## THE FIRST SCHEDULE

### CLASSIFICATION OF OFFENCES

#### EXPLANATORY NOTES:

(1) In regard to offences under the Indian Penal Code, the entries in the second and third columns against a section the number of which is given in the first column are not intended as the definition of, and the punishment prescribed for, the offence in the Indian Penal Code, but merely as indication of the substance of the section.

(2) In this Schedule, (i) the expression “Magistrate of the first class” and “Any Magistrate” include Metropolitan Magistrates but not Executive Magistrates; (ii) the word “cognizable” stands for “a police officer may arrest without warrant”; and (iii) the word “non-cognizable” stands for “a police officer shall not arrest without warrant”.

#### I.—OFFENCES UNDER THE INDIAN PENAL CODE

| Section | Offence | Punishment | Cognizable or non-cognizable | Bailable or Non-bailable | By what Court triable |
|---------|---------|------------|------------------------------|--------------------------|-----------------------|
| 1       | 2       | 3          | 4                            | 5                        | 6                     |

#### CHAPTER V. —ABETMENT

|     |                                                                                                                                         |                                                                                                          |                                                               |                                                           |                                            |
|-----|-----------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------|---------------------------------------------------------------|-----------------------------------------------------------|--------------------------------------------|
| 109 | Abetment of any offence, if the act abetted is committed in consequence, and where no express provision is made for its punishment.     | Same as for offence abetted.                                                                             | According as offence abetted is cognizable or non-cognizable. | According as offence abetted is bailable or non-bailable. | Court by which offence abetted is triable. |
| 110 | Abetment of any offence, if the person abetted does the act with a different intention from that of the abettor.                        | Ditto                                                                                                    | Ditto                                                         | Ditto                                                     | Ditto.                                     |
| 111 | Abetment of any offence, when one act is abetted and a different act is done; subject to the proviso.                                   | Same as for offence intended to be abetted.                                                              | Ditto                                                         | Ditto                                                     | Ditto.                                     |
| 113 | Abetment of any offence, when an effect is caused by the act abetted different from that intended by the abettor.                       | Same as for offence committed.                                                                           | Ditto                                                         | Ditto                                                     | Ditto.                                     |
| 114 | Abetment of any offence, if abettor is present when offence is committed.                                                               | Ditto                                                                                                    | Ditto                                                         | Ditto                                                     | Ditto.                                     |
| 115 | Abetment of an offence, punishable with death or imprisonment for life, if the offence be not committed in consequence of the abetment. | Imprisonment for 7 years and fine.                                                                       | Ditto                                                         | Non-bailable                                              | Ditto.                                     |
|     | If an act which causes harm be done in consequence of the abetment.                                                                     | Imprisonment for 14 years and fine.                                                                      | Ditto                                                         | Ditto                                                     | Ditto.                                     |
| 116 | Abetment of any offence, punishable with imprisonment, if the offence be not committed in consequence of the abetment.                  | Imprisonment extending to a quarter part of the longest term provided for the offence, or fine, or both. | Ditto                                                         | According as offence abetted is bailable or non-bailable. | Ditto.                                     |
|     | If the abettor or the person abetted be a public servant whose duty it is to prevent the offence.                                       | Imprisonment extending to half of the longest term provided for the offence, or fine, or both.           | Ditto                                                         | Ditto                                                     | Ditto.                                     |

| 1                                      | 2                                                                                                                                                                                                                                | 3                                                                                                                                                                                                                                        | 4                                                                                                                  | 5                                                                                                | 6                                                                                                                          |
|----------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------|
| 117                                    | Abetting the commission of an offence by the public or by more than ten persons.                                                                                                                                                 | Imprisonment for 3 years, or fine, or both.                                                                                                                                                                                              | According as offence abetted is cognizable or non-cognizable.                                                      | According as offence abetted is bailable or non-bailable.                                        | Court by which offence abetted is triable.                                                                                 |
| 118                                    | Concealing a design to commit an offence punishable with death or imprisonment for life, if the offence be committed.<br>If the offence be not committed                                                                         | Imprisonment for 7 years and fine.<br>Imprisonment for 3 years and fine.                                                                                                                                                                 | Ditto<br>Ditto                                                                                                     | Non-bailable.<br>Bailable.                                                                       | Ditto.<br>Ditto.                                                                                                           |
| 119                                    | A public servant concealing a design to commit an offence which it is his duty to prevent, if the offence be committed.<br>If the offence be punishable with death or imprisonment for life.<br>If the offence be not committed. | Imprisonment extending to half of the longest term provided for the offence, or fine, or both.<br>Imprisonment for 10 years.<br>Imprisonment extending to a quarter part of the longest term provided for the offence, or fine, or both. | Ditto<br>Ditto<br>Ditto                                                                                            | According as offence abetted is bailable or non-bailable.<br>Non-bailable.<br>Bailable.          | Ditto.<br>Ditto.<br>Ditto.                                                                                                 |
| 120                                    | Concealing a design to commit an offence punishable with imprisonment, if offence be committed.<br>If the offence be not committed.                                                                                              | Ditto<br>Imprisonment extending to one-eighth part of the longest term provided for the offence, or fine, or both.                                                                                                                       | Ditto<br>Ditto                                                                                                     | According as offence abetted is bailable or non-bailable.<br>Bailable.                           | Ditto.<br>Ditto.                                                                                                           |
| CHAPTER VA.—CRIMINAL CONSPIRACY        |                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                          |                                                                                                                    |                                                                                                  |                                                                                                                            |
| 120B                                   | Criminal conspiracy to commit an offence punishable with death, imprisonment for life or rigorous imprisonment for a term of 2 years or upwards.<br><br>Any other criminal conspiracy.                                           | Same as for abetment of the offence which is the object of the conspiracy.<br><br>Imprisonment for 6 months, or fine, or both.                                                                                                           | According as the offence which is the object of conspiracy is cognizable or non-cognizable.<br><br>Non-cognizable. | According as offence which is object of conspiracy is bailable or non-bailable.<br><br>Bailable. | Court by which abetment of the offence which is the object of conspiracy is triable.<br><br>Magistrate of the first class. |
| CHAPTER VI.—OFFENCES AGAINST THE STATE |                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                          |                                                                                                                    |                                                                                                  |                                                                                                                            |
| 121                                    | Waging or attempting to wage war, or abetting the waging of war, against the Government of India.                                                                                                                                | Death, or imprisonment for life and fine.                                                                                                                                                                                                | Cognizable.                                                                                                        | Non-bailable.                                                                                    | Court of Session.                                                                                                          |
| 121A                                   | Conspiring to commit certain offences against the State.                                                                                                                                                                         | Imprisonment for life, or imprisonment for 10 years and fine.                                                                                                                                                                            | Ditto                                                                                                              | Ditto                                                                                            | Ditto.                                                                                                                     |
| 122                                    | Collecting arms, etc., with the intention of waging war against the Government of India.                                                                                                                                         | Imprisonment for life, or imprisonment for 10 years and fine.                                                                                                                                                                            | Ditto                                                                                                              | Ditto                                                                                            | Ditto.                                                                                                                     |
| 123                                    | Concealing with intent to facilitate a design to wage war.                                                                                                                                                                       | Imprisonment for 10 years and fine.                                                                                                                                                                                                      | Ditto                                                                                                              | Ditto                                                                                            | Ditto.                                                                                                                     |
| 124                                    | Assaulting President, Governor, etc., with intent to compel or restrain the exercise of any lawful power.                                                                                                                        | Imprisonment for 7 years and fine.                                                                                                                                                                                                       | Ditto                                                                                                              | Ditto                                                                                            | Ditto.                                                                                                                     |

| 1                                                              | 2                                                                                                                                                            | 3                                                                              | 4              | 5            | 6                              |
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| 124A                                                           | Sedition                                                                                                                                                     | Imprisonment for life and fine, or imprisonment for 3 years and fine, or fine. | Cognizable     | Non-bailable | Court of Session.              |
| 125                                                            | Waging war against any Asiatic power in alliance or at peace with the Government of India, or abetting the waging of such war.                               | Imprisonment for life and fine, or imprisonment for 7 years and fine, or fine. | Ditto          | Ditto        | Ditto.                         |
| 126                                                            | Committing depredation on the territories of any power in alliance or at peace with the Government of India.                                                 | Imprisonment for 7 years and fine, and forfeiture of certain property.         | Ditto          | Ditto.       | Ditto.                         |
| 127                                                            | Receiving property taken by war or depredation mentioned in sections 125 and 126.                                                                            | Ditto.                                                                         | Ditto          | Ditto        | Ditto.                         |
| 128                                                            | Public servant voluntarily allowing prisoner of State or war in his custody to escape.                                                                       | Imprisonment for life, or imprisonment for 10 years and fine.                  | Ditto          | Ditto        | Ditto.                         |
| 129                                                            | Public servant negligently suffering prisoner of State or war in his custody to escape.                                                                      | Simple imprisonment for 3 years and fine.                                      | Ditto          | Bailable     | Magistrate of the first class. |
| 130                                                            | Aiding escape of, rescuing or harbouring, such prisoner, or offering any resistance to the recapture of such prisoner.                                       | Imprisonment for life, or imprisonment for 10 years and fine.                  | Ditto          | Non-bailable | Court of Session.              |
| CHAPTER VII.—OFFENCES RELATING TO THE ARMY, NAVY AND AIR FORCE |                                                                                                                                                              |                                                                                |                |              |                                |
| 131                                                            | Abetting mutiny, or attempting to seduce an officer, soldier, sailor or airman from his allegiance or duty.                                                  | Imprisonment for life, or imprisonment for 10 years and fine.                  | Cognizable     | Non-bailable | Court of Session.              |
| 132                                                            | Abetment of mutiny, if mutiny is committed in consequence thereof.                                                                                           | Death, or imprisonment for life, or imprisonment for 10 years and fine.        | Ditto          | Ditto        | Ditto.                         |
| 133                                                            | Abetment of an assault by an officer, soldier, sailor or airman on his superior officer, when in the execution of his office.                                | Imprisonment for 3 years and fine.                                             | Ditto          | Ditto        | Magistrate of the first class. |
| 134                                                            | Abetment of such assault, if the assault is committed.                                                                                                       | Imprisonment for 7 years and fine.                                             | Ditto          | Ditto        | Ditto                          |
| 135                                                            | Abetment of the desertion of an officer, soldier, sailor or airman.                                                                                          | Imprisonment for 2 years, or fine, or both.                                    | Ditto          | Bailable     | Any Magistrate.                |
| 136                                                            | Harbouring such an officer, soldier, sailor or airman who has deserted.                                                                                      | Ditto                                                                          | Ditto          | Ditto        | Ditto.                         |
| 137                                                            | Deserter concealed on board merchant vessel, through negligence of master or person in charge thereof.                                                       | Fine of 500 rupees.                                                            | Non-cognizable | Ditto.       | Ditto.                         |
| 138                                                            | Abetment of act of insubordination by an officer, soldier, sailor or airman, if the offence be committed in consequence.                                     | Imprisonment for 6 months, or fine, or both.                                   | Cognizable     | Ditto.       | Ditto.                         |
| 140                                                            | Wearing the dress or carrying any token used by a soldier, sailor or airman with intent that it may be believed that he is such a soldier, sailor or airman. | Imprisonment for 3 months, or fine of 500 rupees, or both.                     | Ditto.         | Ditto        | Ditto                          |
| CHAPTER VIII.—OFFENCES AGAINST THE PUBLIC TRANQUILITY          |                                                                                                                                                              |                                                                                |                |              |                                |
| 143                                                            | Being member of an unlawful assembly.                                                                                                                        | Imprisonment for 6 months, or fine, or both.                                   | Cognizable     | Bailable     | Any Magistrate.                |
| 144                                                            | Joining an unlawful assembly armed with any deadly weapon.                                                                                                   | Imprisonment for 2 years, or fine, or both.                                    | Ditto          | Bailable     | Ditto                          |
| 145                                                            | Joining or continuing in an unlawful assembly, knowing that it has been commanded to disperse.                                                               | Ditto                                                                          | Ditto          | Ditto        | Ditto.                         |
| 147                                                            | Rioting.                                                                                                                                                     | Ditto                                                                          | Ditto          | Ditto        | Ditto.                         |

| 1                       | 2                                                                                                                                     | 3                                                                                                        | 4                                                    | 5                                                | 6                                             |
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| 148                     | Rioting, armed with a deadly weapon.                                                                                                  | Imprisonment for 3 years, or fine, or both.                                                              | Ditto                                                | Ditto                                            | Magistrate of the first class.                |
| 149                     | If an offence be committed by any member of an unlawful assembly, every other member of such assembly shall be guilty of the offence. | The same as for the offence.                                                                             | According as offence is cognizable or non-cognizable | According as offence is bailable or non-bailable | The Court by which the offence is triable.    |
| 150                     | Hiring, engaging or employing persons to take part in an unlawful assembly.                                                           | The same as for a member of such assembly, and for any offence committed by any member of such assembly. | Cognizable                                           | Ditto                                            | Ditto.                                        |
| 151                     | Knowingly joining or continuing in any assembly of five or more persons after it has been commanded to disperse.                      | Imprisonment for 6 months, or fine or both.                                                              | Ditto                                                | Bailable                                         | Any Magistrate.                               |
| 152                     | Assaulting or obstructing public servant when suppressing riot, etc.                                                                  | Imprisonment for 3 years, or fine, or both.                                                              | Ditto                                                | Ditto                                            | Magistrate of the first class.                |
| 153                     | Wantonly giving provocation with intent to cause riot, if rioting be committed.                                                       | Imprisonment for 1 year, or fine, or both.                                                               | Ditto                                                | Ditto                                            | Any Magistrate.                               |
|                         | If not committed.                                                                                                                     | Imprisonment for 6 months, or fine, or both.                                                             | Ditto                                                | Ditto                                            | Magistrate of the first class.                |
| 153A                    | Promoting enmity between classes.                                                                                                     | Imprisonment for 3 years, or fine, or both.                                                              | Ditto                                                | Non-bailable                                     | Ditto                                         |
|                         | Promoting enmity between classes in place of worship, etc.                                                                            | Imprisonment for 5 years, and fine.                                                                      | Ditto                                                | Ditto                                            | Ditto                                         |
| <sup>1</sup> [153A<br>A | Knowingly carrying arms in any procession or organising or holding or taking part in any mass drill or mass training with arms.       | Imprisonment for 6 months and fine of 2,000 rupees                                                       | Ditto                                                | Ditto                                            | Any Magistrate.]                              |
| 153B                    | Imputations, assertions prejudicial to national integration.                                                                          | Imprisonment for 3 years, or fine, or both.                                                              | Ditto                                                | Ditto                                            | <sup>2</sup> [Magistrate of the first-class.] |
|                         | If committed in a place of public worship, etc.                                                                                       | Imprisonment for 5 years and fine.                                                                       | Ditto                                                | Ditto                                            | Ditto                                         |
| 154                     | Owner or occupier of land not giving information of riot, etc.                                                                        | Fine of 1,000 rupees.                                                                                    | Non-cognizable                                       | Bailable                                         | Any Magistrate.                               |
| 155                     | Person for whose benefit or on whose behalf a riot takes place not using all lawful means to prevent it.                              | Fine                                                                                                     | Ditto                                                | Ditto                                            | Ditto.                                        |
| 156                     | Agent of owner or occupier for whose benefit a riot is committed not using all lawful means to prevent it.                            | Ditto                                                                                                    | Ditto                                                | Ditto                                            | Ditto                                         |
| 157                     | Harbouring persons hired for an unlawful assembly.                                                                                    | Imprisonment for 6 months, or fine, or both.                                                             | Cognizable                                           | Ditto                                            | Ditto                                         |
| 158                     | Being hired to take part in an unlawful assembly or riot.                                                                             | Ditto                                                                                                    | Ditto                                                | Ditto                                            | Ditto                                         |
|                         | Or to go armed.                                                                                                                       | Imprisonment for 2 years, or fine, or both.                                                              | Ditto                                                | Ditto                                            | Ditto                                         |
| 160                     | Committing affray                                                                                                                     | Imprisonment for one month, or fine of 100 rupees or both.                                               | Ditto                                                | Ditto                                            | Ditto.                                        |

1. Ins. by Act 25 of 2005, s. 42 (date yet to be notified, see appendix)

2. Subs. by s. 42, for "Ditto", *ibid.* (date yet to be notified, see appendix)

| 1                                                      | 2                                                                                                                                                            | 3                                                                                             | 4              | 5            | 6                               |
|--------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------|----------------|--------------|---------------------------------|
| CHAPTER IX.—OFFENCES BY OR RELATING TO PUBLIC SERVANTS |                                                                                                                                                              |                                                                                               |                |              |                                 |
| 161                                                    | Being or expecting to be a public servant, and taking a gratification other than legal remuneration in respect of an official act.                           | Imprisonment for 3 years, or fine, or both.                                                   | Cognizable     | Non-bailable | Magistrate of the first class.  |
| 162                                                    | Taking a gratification in order, by corrupt or illegal means, to influence a public servant.                                                                 | Ditto                                                                                         | Ditto          | Ditto        | Ditto.                          |
| 163                                                    | Taking a gratification for the exercise of personal influence with a public servant.                                                                         | Simple imprisonment for 1 year, or fine, or both.                                             | Ditto          | Ditto        | Ditto.                          |
| 164                                                    | Abetment by public servant of the offences defined in the last two preceding clauses with reference to himself.                                              | Imprisonment for 3 years, or fine, or both.                                                   | Ditto          | Ditto        | Ditto.                          |
| 165                                                    | Public servant obtaining any valuable thing, without consideration, from a person concerned in any proceeding or business transacted by such public servant. | Ditto                                                                                         | Ditto          | Ditto        | Ditto.                          |
| 165A                                                   | Punishment for abetment of offences punishable under section 161 or section 165.                                                                             | Ditto                                                                                         | Ditto          | Ditto        | Ditto.                          |
| 166                                                    | Public servant disobeying a direction of the law with intent to cause injury to any person.                                                                  | Simple imprisonment for 1 year, or fine, or both.                                             | Non-cognizable | Bailable     | Ditto.                          |
| <sup>1</sup> [166A                                     | Public servant disobeying direction under law                                                                                                                | Imprisonment for minimum 6 months which may extend to 2 years and fine.                       | Cognizable     | Bailable     | Magistrate of the first class   |
| 166B                                                   | Non-treatment of victim by hospital                                                                                                                          | Imprisonment for 1 year or fine or both.                                                      | Non-cognizable | Bailable     | Magistrate of the first class.] |
| 167                                                    | Public servant framing an incorrect document with intent to cause injury.                                                                                    | Imprisonment for 3 years, or fine, or both.                                                   | Cognizable     | Ditto.       | Ditto.                          |
| 168                                                    | Public servant unlawfully engaging in trade.                                                                                                                 | Simple imprisonment for 1 year, or fine, or both.                                             | Non-cognizable | Ditto        | Ditto.                          |
| 169                                                    | Public servant unlawfully buying or bidding for property.                                                                                                    | Simple imprisonment for 2 years, or fine, or both and confiscation of property, if purchased. | Ditto.         | Ditto.       | Ditto.                          |
| 170                                                    | Personating a public servant.                                                                                                                                | Imprisonment for 2 years or fine, or both .                                                   | Cognizable     | Non-bailable | Any Magistrate.                 |
| 171                                                    | Wearing garb or carrying token used by public servant with fraudulent intent.                                                                                | Imprisonment for 3 months, or fine of 200 rupees, or both.                                    | Ditto          | Bailable     | Ditto.                          |
| CHAPTER IXA.—OFFENCES RELATING TO ELECTIONS            |                                                                                                                                                              |                                                                                               |                |              |                                 |
| 171E                                                   | Bribery.                                                                                                                                                     | Imprisonment for 1 year or fine, or both, or if treating only, fine only.                     | Non-cognizable | Ditto        | Magistrate of the first class.  |
| 171F                                                   | Undue influence at an election.                                                                                                                              | Imprisonment for one year, or fine, or both.                                                  | Ditto          | Ditto        | Ditto.                          |
|                                                        | Personation at an election                                                                                                                                   | Ditto                                                                                         | Cognizable     | Ditto        | Ditto.                          |
| 171G                                                   | False statement in connection with an election.                                                                                                              | Fine                                                                                          | Non-cognizable | Ditto        | Ditto.                          |
| 171H                                                   | Illegal payments in connection with elections.                                                                                                               | Fine of 500 rupees.                                                                           | Ditto.         | Ditto.       | Ditto.                          |
| 171-I                                                  | Failure to keep election accounts.                                                                                                                           | Ditto                                                                                         | Ditto          | Ditto        | Ditto.                          |

1. Ins. by Act 13 of 2013, s. 24 (w.e.f. 3-2-2013).

| 1                                                               | 2                                                                                                                                                | 3                                                                   | 4                             | 5                       | 6                                                                                                                                         |
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| CHAPTER X.—CONTEMPTS OF THE LAWFUL AUTHORITY OF PUBLIC SERVANTS |                                                                                                                                                  |                                                                     |                               |                         |                                                                                                                                           |
| 172                                                             | Absconding to avoid service of summons or other proceeding from a public servant.                                                                | Simple imprisonment for 1 month, or fine of 500 rupees, or both.    | Non-cognizable                | Bailable                | Any Magistrate.                                                                                                                           |
|                                                                 | If summons or notice require attendance in person, etc., in a Court of Justice.                                                                  | Simple imprisonment for 6 months, or fine of 1,000 rupees, or both  | Ditto                         | Ditto                   | Ditto.                                                                                                                                    |
| 173                                                             | Preventing the service or the affixing of any summons of notice, or the removal of it when it has been affixed, or preventing a proclamation.    | Simple imprisonment for 1 month, or fine of 500 rupees, or both.    | Ditto                         | Ditto                   | Ditto.                                                                                                                                    |
|                                                                 | If summons, etc., require attendance in person, etc., in a Court of Justice.                                                                     | Simple imprisonment for 6 months, or fine of 1,000 rupees, or both  | Ditto                         | Ditto                   | Ditto.                                                                                                                                    |
| 174                                                             | Not obeying a legal order to attend at a certain place in person or by agent, or departing there from without authority.                         | Simple imprisonment for 1 month, or fine of 500 rupees, or both.    | Ditto                         | Ditto                   | Ditto.                                                                                                                                    |
|                                                                 | If the order requires personal attendance, etc., in a Court of Justice.                                                                          | Simple imprisonment for 6 months, or fine of 1,000 rupees, or both. | Ditto                         | Ditto                   | Ditto.                                                                                                                                    |
| <sup>1</sup> [174A]                                             | Failure to appear at specified place and specified time as required by a proclamation published under sub-section (1) of section 82 of this Code | Imprisonment for 3 years, or with fine, or with both                | Cognizable                    | Non-bailable            | Magistrate of the first class.                                                                                                            |
|                                                                 | In a case where declaration has been made under sub-section (4) of section 82 of this Code pronouncing a person as proclaimed offender           | Imprisonment for 7 years and fine                                   | Ditto                         | Ditto                   | Ditto].                                                                                                                                   |
| 175                                                             | Intentionally omitting to produce a document to a public servant by a person legally bound to produce or deliver such document.                  | Simple imprisonment for 1 month, or fine of 500 rupees, or both.    | <sup>2</sup> [Non-cognizable] | <sup>2</sup> [Bailable] | The Court in which the offence is committed, subject to the provisions of Chapter XXVI; or, if not committed, in a court, any Magistrate. |
|                                                                 | If the document is required to be produced in or delivered to a Court of Justice.                                                                | Simple imprisonment for 6 months, or fine of 1,000 rupees, or both. | Ditto.                        | Ditto.                  | Ditto.                                                                                                                                    |
| 176                                                             | Intentionally omitting to give notice or information to a public servant by a person legally bound to give such notice or information.           | Simple imprisonment for 1 month, or fine of 500 rupees, or both.    | Ditto.                        | Ditto.                  | Any Magistrate.                                                                                                                           |
|                                                                 | If the notice or information required respects the commission of an offence, etc.                                                                | Simple imprisonment for 6 months, or fine of 1,000 rupees, or both. | Ditto.                        | Ditto.                  | Ditto.                                                                                                                                    |
|                                                                 | If the notice or information is required by an order passed under sub-section (1) of section 356 of this Code.                                   | Imprisonment for 6 months, or fine of 1,000 rupees, or both.        | Ditto                         | Ditto                   | Ditto.                                                                                                                                    |
| 177                                                             | Knowingly furnishing false information to a public servant.                                                                                      | Ditto                                                               | Ditto                         | Ditto                   | Ditto.                                                                                                                                    |
|                                                                 | If the information required respects the commission of an offence, etc.                                                                          | Imprisonment for 2 years, or fine, or both.                         | Ditto                         | Ditto                   | Ditto.                                                                                                                                    |

1. Ins. by Act 25 of 2005, s. 42 (w.e.f. 23-6-2006).

2. Subs. by s. 42, *ibid.*, for the word "Ditto", for the respective entries in column 4 and 5 relating to s.175 (w.e.f. 23-6-2006).

| 1   | 2                                                                                                                                                                                   | 3                                                                   | 4              | 5        | 6                                                                                                                                        |
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| 178 | Refusing oath when duly required to take oath by a public servant.                                                                                                                  | Simple imprisonment for 6 months, or fine of 1,000 rupees, or both. | Non-cognizable | Bailable | The Court in which the offence is committed, subject to the provisions of Chapter XXVI; or, if not committed in a Court, any Magistrate. |
| 179 | Being legally bound to state truth, and refusing to answer questions.                                                                                                               | Ditto                                                               | Ditto          | Ditto    | Ditto.                                                                                                                                   |
| 180 | Refusing to sign a statement made to a public servant when legally required to do so.                                                                                               | Simple imprisonment for 3 months, or fine of 500 rupees, or both.   | Ditto          | Ditto    | Ditto.                                                                                                                                   |
| 181 | Knowingly stating to a public servant on oath as true that which is false.                                                                                                          | Imprisonment for 3 years and fine.                                  | Ditto          | Ditto    | Magistrate of the first class.                                                                                                           |
| 182 | Giving false information to a public servant in order to cause him to use his lawful power to the injury or annoyance of any person.                                                | Imprisonment for 6 months, or fine of 1,000 rupees, or both.        | Ditto          | Ditto    | Any Magistrate..                                                                                                                         |
| 183 | Resistance to the taking of property by the lawful authority of a public servant.                                                                                                   | Ditto                                                               | Ditto          | Ditto    | Ditto.                                                                                                                                   |
| 184 | Obstructing sale of property offered for sale by authority of a public servant.                                                                                                     | Imprisonment for 1 month, or fine of 500 rupees, or both.           | Ditto          | Ditto    | Ditto.                                                                                                                                   |
| 185 | Bidding, by a person under a legal incapacity to purchase it, for property at a lawfully authorised sale, or bidding without intending to perform the obligations incurred thereby. | Imprisonment for 1 month, or fine of 200 rupees, or both.           | Ditto          | Ditto    | Ditto.                                                                                                                                   |
| 186 | Obstructing public servant in discharge of his public functions.                                                                                                                    | Imprisonment for 3 months, or fine of 500 rupees, or both.          | Ditto          | Ditto    | Ditto.                                                                                                                                   |
| 187 | Omission to assist public servant when bound by law to give such assistance.                                                                                                        | Simple imprisonment for 1 month, or fine of 200 rupees, or both.    | Ditto          | Ditto    | Ditto.                                                                                                                                   |
|     | Wilfully neglecting to aid a public servant who demands aid in the execution of process, the prevention of offences, etc.                                                           | Simple imprisonment for 6 months, or fine of 500 rupees, or both.   | Ditto          | Ditto    | Ditto.                                                                                                                                   |
| 188 | Disobedience to an order lawfully promulgated by a public servant, if such disobedience causes obstruction, annoyance or injury to persons lawfully employed.                       | Simple imprisonment for 1 month, or fine of 200 rupees, or both.    | Cognizable     | Ditto    | Ditto.                                                                                                                                   |
|     | If such disobedience causes danger to human life, health or safety, etc.                                                                                                            | Imprisonment for 6 months, or fine of 1,000 rupees, or both.        | Ditto          | Ditto    | Ditto.                                                                                                                                   |
| 189 | Threatening a public servant with injury to him or one in whom he is interested, to induce him to do or forbear to do any official act.                                             | Imprisonment for 2 years, or fine, or both.                         | Non-cognizable | Ditto    | Ditto.                                                                                                                                   |
| 190 | Threatening any person to induce him to refrain from making a legal application for protection from injury.                                                                         | Imprisonment for 1 year, or fine, or both.                          | Ditto          | Ditto    | Ditto.                                                                                                                                   |

| 1                                                              | 2                                                                                                                                                                        | 3                                                                                          | 4                                                                                                                  | 5                                                                         | 6                                                                          |
|----------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------|----------------------------------------------------------------------------|
| CHAPTER XI.—FALSE EVIDENCE AND OFFENCES AGAINST PUBLIC JUSTICE |                                                                                                                                                                          |                                                                                            |                                                                                                                    |                                                                           |                                                                            |
| 193                                                            | Giving or fabricating false evidence in a judicial proceeding.                                                                                                           | Imprisonment for 7 years and fine.                                                         | Non-cognizable                                                                                                     | Bailable                                                                  | Magistrate of the first class.                                             |
|                                                                | Giving or fabricating false evidence in any other case                                                                                                                   | Imprisonment for 3 years and fine.                                                         | Ditto                                                                                                              | Ditto                                                                     | Any Magistrate.                                                            |
| 194                                                            | Giving or fabricating false evidence with intent to cause any person to be convicted of capital offence.                                                                 | Imprisonment for life, or rigorous imprisonment for 10 years and fine.                     | Ditto                                                                                                              | Non-bailable                                                              | Court of session.                                                          |
|                                                                | If innocent person be thereby convicted and executed.                                                                                                                    | Death, or as above.                                                                        | Ditto                                                                                                              | Ditto                                                                     | Ditto.                                                                     |
| 195                                                            | Giving or fabricating false evidence with intent to procure conviction of an offence punishable with imprisonment for life or with imprisonment for 7 years, or upwards. | The same as for the offence.                                                               | Ditto                                                                                                              | Ditto                                                                     | Ditto.                                                                     |
| <sup>1</sup> [195A]                                            | Threatening any person to give false evidence.                                                                                                                           | Imprisonment for 7 years, or fine, or both.                                                | Cognizable                                                                                                         | Ditto                                                                     | Court by which offence of giving false evidence is triable.                |
|                                                                | If innocent person is convicted and sentenced in consequence of false evidence with death, or imprisonment for more than seven years.                                    | The same as for the offence.                                                               | Ditto                                                                                                              | Ditto                                                                     | Ditto]                                                                     |
| 196                                                            | Using in a judicial proceeding evidence known to be false or fabricated.                                                                                                 | The same as for giving or fabricating false evidence.                                      | <sup>2</sup> [Non-cognizable]                                                                                      | According as offence of giving such evidence is bailable or non-bailable. | Court by which offence of giving or fabricating false evidence is triable. |
| 197                                                            | Knowingly issuing or signing a false certificate relating to any fact of which such certificate is by law admissible in evidence.                                        | Ditto                                                                                      | Ditto                                                                                                              | Bailable                                                                  | Court by which offence of giving false evidence is triable.                |
| 198                                                            | Using as a true certificate one known to be false in a material point.                                                                                                   | Ditto                                                                                      | Ditto                                                                                                              | Ditto                                                                     | Ditto.                                                                     |
| 199                                                            | False statement made in any declaration which is by law receivable as evidence.                                                                                          | Ditto                                                                                      | Ditto                                                                                                              | Ditto                                                                     | Ditto.                                                                     |
| 200                                                            | Using as true any such declaration known to be false.                                                                                                                    | Ditto                                                                                      | Ditto                                                                                                              | Ditto                                                                     | Ditto.                                                                     |
| 201                                                            | Causing disappearance of evidence of an offence committed, or giving false information touching it to screen the offender, if a capital offence.                         | Imprisonment for 7 years and fine.                                                         | According as the offence in relation to which disappearance of evidence is caused is cognizable or non-cognizable. | Ditto                                                                     | Court of Session.                                                          |
|                                                                | If punishable with imprisonment for life or imprisonment for 10 years.                                                                                                   | Imprisonment for 3 years and fine.                                                         | Non-cognizable                                                                                                     | Ditto                                                                     | Magistrate of the first class.                                             |
|                                                                | If punishable with less than 10 years' imprisonment.                                                                                                                     | Imprisonment for a quarter of the longest term provided for the offence, or fine, or both. | Ditto                                                                                                              | Ditto                                                                     | Court by which the offence is triable.                                     |
| 202                                                            | Intentional omission to give information of an offence by a person legally bound to inform.                                                                              | Imprisonment for 6 months, or fine, or both.                                               | Ditto                                                                                                              | Ditto                                                                     | Any Magistrate.                                                            |
| 203                                                            | Giving false information respecting an offence committed.                                                                                                                | Imprisonment for 2 years, or fine, or both.                                                | Ditto                                                                                                              | Ditto                                                                     | Ditto.                                                                     |

1. Ins. by Act 2 of 2006, s. 7 (w.e.f. 16-4-2006).

2. Subs. by s. 7, *ibid.* for the word "Ditto", occurring in column 4 relating to s.196 (w.e.f. 16-4-2006).



| 1   | 2                                                                                                                                                                                                        | 3                                                                                                                    | 4              | 5        | 6                              |
|-----|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------|----------------|----------|--------------------------------|
| 204 | Secreting or destroying any document to prevent its production as evidence.                                                                                                                              | Imprisonment for 2 years, or fine, or both.                                                                          | Non-cognizable | Bailable | Magistrate of the first class. |
| 205 | False personation for the purpose of any act or proceeding in a suit or criminal prosecution, or for becoming bail or security.                                                                          | Imprisonment for 3 years, or fine, or both.                                                                          | Ditto          | Ditto    | Ditto                          |
| 206 | Fraudulent removal or concealment, etc., of property to prevent its seizure as a forfeiture or in satisfaction of a fine under sentence, or in execution of a decree.                                    | Imprisonment for 2 years, or fine, or both.                                                                          | Ditto          | Ditto    | Any Magistrate.                |
| 207 | Claiming property without right, or practicing deception touching any right to it, to prevent its being taken as a forfeiture, or in satisfaction of a fine under sentence, or in execution of a decree. | Ditto                                                                                                                | Ditto          | Ditto    | Ditto.                         |
| 208 | Fraudulently suffering a decree to pass for a sum not due, or suffering decree to be executed after it has been satisfied.                                                                               | Ditto                                                                                                                | Ditto          | Ditto    | Magistrate of the first class. |
| 209 | False claim in a Court of Justice.                                                                                                                                                                       | Imprisonment for 2 years and fine.                                                                                   | Ditto          | Ditto    | Ditto.                         |
| 210 | Fraudulently obtaining a decree for a sum not due, or causing a decree to be executed after it has been satisfied.                                                                                       | Imprisonment for 2 years, or fine, or both.                                                                          | Ditto          | Ditto    | Ditto.                         |
| 211 | False charge of offence made with intent to injure.                                                                                                                                                      | Ditto                                                                                                                | Ditto          | Ditto    | Ditto.                         |
|     | If offence charged be punishable with imprisonment for 7 years or upwards.                                                                                                                               | Imprisonment for 7 years and fine.                                                                                   | Ditto          | Ditto    | Ditto                          |
|     | If offence charged be capital or punishable with imprisonment for life.                                                                                                                                  | Ditto                                                                                                                | Ditto          | Ditto    | Court of Session.              |
| 212 | Harbouring an offender, if the offence be capital.                                                                                                                                                       | Imprisonment for 5 years and fine.                                                                                   | Cognizable     | Ditto    | Magistrate of the first class. |
|     | If punishable with imprisonment for life or with imprisonment for 10 years.                                                                                                                              | Imprisonment for 3 years and fine.                                                                                   | Ditto          | Ditto    | Ditto.                         |
|     | If punishable with imprisonment for 1 year and not for 10 years.                                                                                                                                         | Imprisonment for a quarter of the longest term, and of the descriptions, provided for the offence, or fine, or both. | Ditto          | Ditto    | Ditto.                         |
| 213 | Taking gift, etc., to screen an offender from punishment if the offence be capital.                                                                                                                      | Imprisonment for 7 years and fine.                                                                                   | Ditto          | Ditto    | Ditto.                         |
|     | If punishable with imprisonment for life or with imprisonment for 10 years.                                                                                                                              | Imprisonment for 3 years and fine.                                                                                   | Ditto          | Ditto    | Ditto.                         |
|     | If punishable with imprisonment for less than 10 years.                                                                                                                                                  | Imprisonment for a quarter of the longest term provided for the offence, or fine, or both.                           | Ditto          | Ditto    | Ditto.                         |
| 214 | Offering gift or restoration of property in consideration of screening offender if the offence be capital.                                                                                               | Imprisonment for 7 years and fine.                                                                                   | Non-cognizable | Ditto    | Ditto.                         |
|     | If punishable with imprisonment for life or with imprisonment for 10 years.                                                                                                                              | Imprisonment for 3 years and fine.                                                                                   | Ditto          | Ditto    | Ditto.                         |
|     | If punishable with imprisonment for less than 10 years.                                                                                                                                                  | Imprisonment for a quarter of the longest term, provided for the offence, or fine, or both.                          | Ditto          | Ditto    | Ditto.                         |
| 215 | Taking gift to help to recover movable property of which a person has been deprived by an offence without causing apprehension of offender.                                                              | Imprisonment for 2 years, or fine, or both.                                                                          | Cognizable     | Ditto    | Ditto.                         |

| 1    | 2                                                                                                                                                                   | 3                                                                                          | 4                                                                                                          | 5            | 6                              |
|------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------|--------------|--------------------------------|
| 216  | Harbouring an offender who has escaped from custody, or whose apprehension has been ordered, if the offence be capital.                                             | Imprisonment for 7 years and fine.                                                         | Cognizable                                                                                                 | Bailable     | Magistrate of the first class. |
|      | If punishable with imprisonment for life or with imprisonment for 10 years.                                                                                         | Imprisonment for 3 years, with or without fine.                                            | Ditto                                                                                                      | Ditto        | Ditto.                         |
|      | If punishable with imprisonment for 1 year and not for 10 years.                                                                                                    | Imprisonment for a quarter of the longest term provided for the offence, or fine, or both. | Ditto                                                                                                      | Ditto        | Ditto.                         |
| 216A | Harbouring robbers or dacoits.                                                                                                                                      | Rigorous imprisonment for 7 years and fine.                                                | Ditto                                                                                                      | Ditto        | Ditto.                         |
| 217  | Public servant disobeying a direction of law with intent to save person from punishment, or property from forfeiture.                                               | Imprisonment for 2 years, or fine, or both.                                                | Non-cognizable                                                                                             | Ditto        | Any Magistrate.                |
| 218  | Public servant framing an incorrect record or writing with intent to save person from punishment, or property from forfeiture.                                      | Imprisonment for 3 years, or fine, or both.                                                | Cognizable                                                                                                 | Ditto        | Magistrate of the first class. |
| 219  | Public servant in a judicial proceeding corruptly making and pronouncing an order, report, verdict, or decision which he knows to be contrary to law.               | Imprisonment for 7 years, or fine, or both.                                                | Non-cognizable                                                                                             | Ditto        | Ditto.                         |
| 220  | Commitment for trial or confinement by a person having authority, who knows that he is acting contrary to law.                                                      | Ditto                                                                                      | Ditto                                                                                                      | Ditto        | Ditto.                         |
| 221  | Intentional omission to apprehend on the part of a public servant bound by law to apprehend an offender, if the offence be capital.                                 | Imprisonment for 7 years, with or without fine.                                            | According as the offence in relation to which such omission has been made is cognizable or non-cognizable. | Ditto        | Ditto.                         |
|      | If punishable with imprisonment for life or imprisonment for 10 years.                                                                                              | Imprisonment for 3 years, with or without fine.                                            | Cognizable                                                                                                 | Ditto        | Ditto.                         |
|      | If punishable with imprisonment for less than 10 years.                                                                                                             | Imprisonment for 2 years, with or without fine.                                            | Ditto                                                                                                      | Ditto        | Ditto.                         |
| 222  | Intentional omission to apprehend on the part of a public servant bound by law to apprehend person under sentence of a Court of Justice if under sentence of death. | Imprisonment for life, or imprisonment for 14 years, with or without fine.                 | Ditto                                                                                                      | Non-bailable | Court of Session.              |
|      | If under sentence of imprisonment for life or imprisonment for 10 years, or upwards.                                                                                | Imprisonment for 7 years, with or without fine.                                            | Ditto                                                                                                      | Ditto        | Magistrate of the first class. |
|      | If under sentence of imprisonment for less than 10 years or lawfully committed to custody.                                                                          | Imprisonment for 3 years, or fine, or both.                                                | Ditto                                                                                                      | Bailable     | Ditto.                         |
| 223  | Escape from confinement negligently suffered by a public servant.                                                                                                   | Simple imprisonment for 2 years, or fine, or both.                                         | Non-cognizable                                                                                             | Ditto        | Any Magistrate.                |
| 224  | Resistance or obstruction by a person to his lawful apprehension.                                                                                                   | Imprisonment for 2 years, or fine, or both.                                                | Cognizable                                                                                                 | Ditto        | Ditto.                         |
| 225  | Resistance or obstruction to the lawful apprehension of any person, or rescuing him from lawful custody.                                                            | Ditto                                                                                      | Ditto                                                                                                      | Ditto        | Ditto.                         |
|      | If charged with an offence punishable with imprisonment for life or imprisonment for 10 years.                                                                      | Imprisonment for 3 years and fine.                                                         | Ditto                                                                                                      | Non-bailable | Magistrate of the first class. |
|      | If charged with a capital offence.                                                                                                                                  | Imprisonment for 7 years and fine.                                                         | Ditto                                                                                                      | Ditto        | Ditto.                         |

| 1                   | 2                                                                                                                                                                                                                         | 3                                                                                                   | 4                       | 5                     | 6                                                                                      |
|---------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------|-------------------------|-----------------------|----------------------------------------------------------------------------------------|
|                     | If the person is sentenced to imprisonment for life, or imprisonment for 10 years, or upwards.<br>If under sentence of death                                                                                              | Imprisonment for 7 years and fine.<br>Imprisonment for life, or imprisonment for 10 years and fine. | Cognizable<br>Ditto     | Non-bailable<br>Ditto | Magistrate of the first class.<br>Court of Session.                                    |
| 225A                | Omission to apprehend, or sufferance of escape on part of public servant, in cases not otherwise provided for:—<br>(a) in case of intentional omission or sufferance;<br>(b) in case of negligent omission or sufferance. | Imprisonment for 3 years, or fine, or both.<br>Simple imprisonment for 2 years, or fine, or both.   | Non-cognizable<br>Ditto | Bailable<br>Ditto     | Magistrate of the first class.<br>Any Magistrate.                                      |
| 225B                | Resistance or obstruction to lawful apprehension, or escape or rescue in cases not otherwise provided for.                                                                                                                | Imprisonment for 6 months, or fine, or both.                                                        | Cognizable              | Ditto                 | Ditto.                                                                                 |
| 227                 | Violation of condition of remission of punishment.                                                                                                                                                                        | Punishment of original sentence, or if part of the punishment has been undergone, the residue.      | Ditto                   | Non-bailable          | The Court by which the original offence was triable.                                   |
| 228                 | Intentional insult or interruption to a public servant sitting in any stage of a judicial proceeding.                                                                                                                     | Simple imprisonment for 6 months, or fine of 1,000 rupees, or both.                                 | Non-cognizable          | Bailable              | The Court in which the offence is committed subject to the provisions of Chapter XXVI. |
| <sup>1</sup> [228A] | Disclosure of identity of the victim of certain offences, etc.<br>Printing or publication of a proceeding without prior permission of court.                                                                              | Imprisonment for two years and fine.<br>Ditto                                                       | Cognizable<br>Ditto     | Ditto<br>Ditto        | Any Magistrate.<br>Ditto.]                                                             |
| 229                 | Personation of a juror or assessor.                                                                                                                                                                                       | Imprisonment for 2 years, or fine, or both.                                                         | Non-cognizable          | Ditto                 | Magistrate of the first class.                                                         |
| <sup>2</sup> [229A] | Failure by person released on bail or bond to appear in Court                                                                                                                                                             | Imprisonment for 1 year, or fine, or both                                                           | Cognizable              | Non-bailable          | Any Magistrate.]                                                                       |

## CHAPTER XII.—OFFENCES RELATING TO COIN AND GOVERNMENT STAMPS

|     |                                                                                                 |                                                               |            |              |                                |
|-----|-------------------------------------------------------------------------------------------------|---------------------------------------------------------------|------------|--------------|--------------------------------|
| 231 | Counterfeiting, or performing any part of the process of counterfeiting, coin.                  | Imprisonment for 7 years and fine.                            | Cognizable | Non-bailable | Magistrate of the first class. |
| 232 | Counterfeiting, or performing any part of the process of counterfeiting, Indian coin.           | Imprisonment for life, or imprisonment for 10 years and fine. | Ditto      | Ditto        | Court of Session.              |
| 233 | Making, buying or selling instrument for the purpose of counterfeiting coin.                    | Imprisonment for 3 years and fine.                            | Ditto      | Ditto        | Magistrate of the first class. |
| 234 | Making, buying or selling instrument for the purpose of counterfeiting Indian coin.             | Imprisonment for 7 years and fine.                            | Ditto      | Ditto        | Court of Session.              |
| 235 | Possession of instrument or material for the purpose of using the same for counterfeiting coin. | Imprisonment for 3 years and fine.                            | Ditto      | Ditto        | Magistrate of the first class. |
|     | If Indian coin.                                                                                 | Imprisonment for 10 years and fine.                           | Ditto      | Ditto        | Court of Session.              |

1. Ins. by Act 43 of 1983, s. 5 (w.e.f. 25.12.1983).

2. Ins. by Act 25 of 2005, s. 42 (w.e.f. 23-6-2006).

| 1   | 2                                                                                                                                           | 3                                                                                            | 4          | 5            | 6                              |
|-----|---------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------|------------|--------------|--------------------------------|
| 236 | Abetting, in India, the counterfeiting, out of India, of coin.                                                                              | The punishment provided for abetting the counterfeiting of such coin within India.           | Cognizable | Non-bailable | Court of Session.              |
| 237 | Import or export of counterfeit coin, knowing the same to be counterfeit.                                                                   | Imprisonment for 3 years and fine.                                                           | Ditto      | Ditto        | Magistrate of the first class. |
| 238 | Import or export of counterfeit of Indian coin, knowing the same to be counterfeit.                                                         | Imprisonment for life, or imprisonment for 10 years and fine.                                | Ditto      | Ditto        | Court of Session.              |
| 239 | Having any counterfeit coin known to be such when it came into possession, and delivering, etc., the same to any person.                    | Imprisonment for 5 years and fine.                                                           | Ditto      | Ditto        | Magistrate of the first class. |
| 240 | Same with respect to Indian coin.                                                                                                           | Imprisonment for 10 years and fine.                                                          | Ditto      | Ditto        | Court of Session.              |
| 241 | Knowingly delivering to another any counterfeit coin as genuine, which, when first possessed, the deliverer did not know to be counterfeit. | Imprisonment for 2 years, or fine, or 10 times the value of the coin counterfeited, or both. | Ditto      | Ditto        | Any Magistrate.                |
| 242 | Possession of counterfeit coin by a person who knew it to be counterfeit when he became possessed thereof.                                  | Imprisonment for 3 years and fine.                                                           | Ditto      | Ditto        | Magistrate of the first class. |
| 243 | Possession of Indian coin by a person who knew it to be counterfeit when he became possessed thereof.                                       | Imprisonment for 7 years and fine.                                                           | Ditto      | Ditto        | Ditto.                         |
| 244 | Person employed in a Mint causing coin to be of a different weight or composition from that fixed by law.                                   | Ditto                                                                                        | Ditto      | Ditto        | Ditto.                         |
| 245 | Unlawfully taking from a Mint any coining instrument.                                                                                       | Ditto                                                                                        | Ditto      | Ditto        | Ditto.                         |
| 246 | Fraudulently diminishing the weight or altering the composition of Indian coin.                                                             | Imprisonment for 3 years and fine.                                                           | Ditto      | Ditto        | Ditto.                         |
| 247 | Fraudulently diminishing the weight or altering the composition of Indian coin.                                                             | Imprisonment for 7 years and fine.                                                           | Ditto      | Ditto        | Ditto.                         |
| 248 | Altering appearance of any coin with intent that it shall pass as a coin of a different description.                                        | Imprisonment for 3 years and fine.                                                           | Ditto      | Ditto        | Ditto.                         |
| 249 | Altering appearance of Indian coin with intent that it shall pass as a coin of a different description.                                     | Imprisonment for 7 years and fine.                                                           | Ditto      | Ditto        | Ditto.                         |
| 250 | Delivery to another of coin possessed with the knowledge that it is altered.                                                                | Imprisonment for 5 years and fine.                                                           | Ditto      | Ditto        | Ditto.                         |
| 251 | Delivery of Indian coin possessed with the knowledge that it is altered.                                                                    | Imprisonment for 10 years and fine.                                                          | Ditto      | Ditto        | Court of Session.              |
| 252 | Possession of altered coin by a person who knew it to be altered when he became possessed thereof.                                          | Imprisonment for 3 years and fine.                                                           | Ditto      | Ditto        | Magistrate of the first class. |
| 253 | Possession of Indian coin by a person who knew it to be altered when he became possessed thereof.                                           | Imprisonment for 5 years and fine.                                                           | Ditto      | Ditto        | Ditto.                         |
| 254 | Delivery to another of coin as genuine which, when first possessed, the deliverer did not know to be altered.                               | Imprisonment for 2 years or fine, or 10 times the value of the coin.                         | Ditto      | Ditto        | Any Magistrate.                |
| 255 | Counterfeiting a Government stamp.                                                                                                          | Imprisonment for life, or imprisonment for 10 years and fine.                                | Ditto      | Ditto        | Court of Session.              |
| 256 | Having possession of an instrument or material for the purpose of counterfeiting a Government stamp.                                        | Imprisonment for 7 years and fine.                                                           | Ditto      | Ditto        | Magistrate of the first class. |

| 1    | 2                                                                                                                                                          | 3                                           | 4          | 5            | 6                              |
|------|------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------|------------|--------------|--------------------------------|
| 257  | Making, buying or selling instrument for the purpose of counterfeiting a Government stamp.                                                                 | Imprisonment for 7 years and fine.          | Cognizable | Non-bailable | Magistrate of the first class. |
| 258  | Sale of counterfeit Government stamp.                                                                                                                      | Ditto                                       | Ditto      | Ditto        | Ditto.                         |
| 259  | Having possession of a counterfeit Government stamp.                                                                                                       | Ditto                                       | Ditto      | Bailable     | Ditto.                         |
| 260  | Using as genuine a Government stamp known to be counterfeit.                                                                                               | Imprisonment for 7 years, or fine, or both. | Ditto      | Ditto        | Ditto.                         |
| 261  | Effacing any writing from a substance bearing a Government stamp, removing from a document a stamp used for it, with intent to cause a loss to Government. | Imprisonment for 3 years, or fine, or both. | Ditto      | Ditto        | Ditto                          |
| 262  | Using a Government stamp known to have been before used.                                                                                                   | Imprisonment for 2 years, or fine, or both. | Ditto      | Ditto        | Any Magistrate.                |
| 263  | Erasure of mark denoting that stamps have been used.                                                                                                       | Imprisonment for 3 years, or fine, or both. | Ditto      | Ditto        | Magistrate of the first class. |
| 263A | Fictitious stamps                                                                                                                                          | Fine of 200 rupees                          | Ditto      | Ditto        | Any Magistrate.                |

### CHAPTER XIII.—OFFENCES RELATING TO WEIGHTS AND MEASURES

|     |                                                                      |                                            |                |              |                 |
|-----|----------------------------------------------------------------------|--------------------------------------------|----------------|--------------|-----------------|
| 264 | Fraudulent use of false instrument for weighing.                     | Imprisonment for 1 year, or fine, or both. | Non-cognizable | Bailable     | Any Magistrate. |
| 265 | Fraudulent use of false weight or measure.                           | Ditto                                      | Ditto          | Ditto        | Ditto.          |
| 266 | Being in possession of false weights or measures for fraudulent use. | Ditto                                      | Ditto          | Ditto        | Ditto.          |
| 267 | Making or selling false weights or measures for fraudulent use.      | Ditto.                                     | Cognizable     | Non-bailable | Ditto.          |

### CHAPTER XIV.—OFFENCES AFFECTING THE PUBLIC HEALTH, SAFETY, CONVENIENCE, DECENCY AND MORALS

|     |                                                                                                                                                 |                                                              |                |                             |                 |
|-----|-------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------|----------------|-----------------------------|-----------------|
| 269 | Negligently doing any act known to be likely to spread infection of any disease dangerous to life.                                              | Imprisonment for 6 months, or fine, or both.                 | Cognizable     | Bailable                    | Any Magistrate. |
| 270 | Malignantly doing any act known to be likely to spread infection of any disease dangerous to life.                                              | Imprisonment for 2 years, or fine, or both.                  | Ditto          | Ditto                       | Ditto.          |
| 271 | Knowingly disobeying any quarantine rule.                                                                                                       | Imprisonment for 6 months, or fine, or both.                 | Non-cognizable | Ditto                       | Ditto.          |
| 272 | Adulterating food or drink intended for sale, so as to make the same noxious.                                                                   | Imprisonment for 6 months, or fine of 1,000 rupees, or both. | Ditto          | Ditto                       | Ditto.          |
| 273 | Selling any food or drink as food and drink, knowing the same to be noxious.                                                                    | Ditto.                                                       | Ditto.         | Ditto                       | Ditto.          |
| 274 | Adulterating any drug or medical preparation intended for sale so as to lessen its efficacy, or to change its operation, or to make it noxious. | Ditto                                                        | Ditto          | <sup>1</sup> [Non-bailable] | Ditto.          |
| 275 | Offering for sale or issuing from a dispensary any drug or medical preparation known to have been adulterated.                                  | Ditto                                                        | Ditto          | <sup>2</sup> [Bailable]     | Ditto.          |
| 276 | Knowingly selling or issuing from a dispensary any drug or medical preparation as a different drug or medical preparation.                      | Ditto                                                        | Ditto          | Ditto                       | Ditto.          |

1. Subs. by Act 25 of 2005, s. 42(f)(i), for the word “Ditto”, occurring in column 5 relating to s. 274 (w.e.f. 23-6-2006).

2. Subs. by s. 42 (f) (ii), *ibid.*, for the word “Ditto”, occurring in column 5 relating to s. 275 (w.e.f. 23-6-2006).

| 1    | 2                                                                                                                                                                  | 3                                                                                                                                                                                                         | 4              | 5        | 6                              |
|------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|----------|--------------------------------|
| 277  | Defiling the water of a public spring or reservoir.                                                                                                                | Imprisonment for 3 months, or fine of 500 rupees, or both.                                                                                                                                                | Cognizable     | Bailable | Any Magistrate.                |
| 278  | Making atmosphere noxious to health.                                                                                                                               | Fine of 500 rupees                                                                                                                                                                                        | Non-cognizable | Ditto    | Ditto.                         |
| 279  | Driving or riding on a public way so rashly or negligently as to endanger human life, etc.                                                                         | Imprisonment for 6 months, or fine of 1,000 rupees, or both.                                                                                                                                              | Cognizable     | Ditto    | Ditto.                         |
| 280  | Navigating any vessel so rashly or negligently as to endanger human life, etc.                                                                                     | Ditto                                                                                                                                                                                                     | Ditto          | Ditto    | Ditto.                         |
| 281  | Exhibition of a false light, mark or buoy.                                                                                                                         | Imprisonment for 7 years, or fine, or both.                                                                                                                                                               | Ditto          | Ditto    | Magistrate of the first class. |
| 282  | Conveying for hire any person by water, in a vessel in such a state, or so loaded, as to endanger his life.                                                        | Imprisonment for 6 months, or fine of 1,000 rupees, or both.                                                                                                                                              | Ditto          | Ditto    | Any Magistrate.                |
| 283  | Causing danger, obstruction or, injury in any public way or line of navigation.                                                                                    | Fine of 200 rupees.                                                                                                                                                                                       | Ditto          | Ditto    | Ditto.                         |
| 284  | Dealing with any poisonous substance so as to endanger human life, etc.                                                                                            | Imprisonment for 6 months, or fine of 1,000 rupees, or both.                                                                                                                                              | Ditto          | Ditto    | Ditto.                         |
| 285  | Dealing with fire or any combustible matter so as to endanger human life, etc.                                                                                     | Ditto                                                                                                                                                                                                     | Ditto          | Ditto    | Ditto.                         |
| 286  | So dealing with any explosive substance.                                                                                                                           | Ditto                                                                                                                                                                                                     | Ditto          | Ditto    | Ditto.                         |
| 287  | So dealing with any machinery.                                                                                                                                     | Ditto                                                                                                                                                                                                     | Non-cognizable | Ditto    | Ditto.                         |
| 288  | A person omitting to guard against probable danger to human life by the fall of any building over which he has a right entitling him to pull it down or repair it. | Ditto                                                                                                                                                                                                     | Ditto          | Ditto    | Ditto.                         |
| 289  | A person omitting to take order with any animal in his possession, so as to guard against danger to human life, or of grievous hurt, from such animal.             | Ditto                                                                                                                                                                                                     | Cognizable     | Ditto    | Ditto.                         |
| 290  | Committing a public nuisance.                                                                                                                                      | Fine of 200 rupees                                                                                                                                                                                        | Non-cognizable | Ditto    | Ditto.                         |
| 291  | Continuance of nuisance after injunction to discontinue.                                                                                                           | Simple imprisonment for 6 months, or fine, or both.                                                                                                                                                       | Cognizable     | Ditto    | Ditto.                         |
| 292  | Sale, etc., of obscene books, etc.                                                                                                                                 | On first conviction, with imprisonment for 2 years, and with fine of 2,000 rupees, and, in the event of second or subsequent conviction, with imprisonment for five years, and with fine of 5,000 rupees. | Ditto          | Ditto    | Ditto.                         |
| 293  | Sale, etc., of obscene objects to young persons.                                                                                                                   | On first conviction, with imprisonment for 3 years, and with fine of 2,000 rupees, and in the event of second or subsequent conviction, with imprisonment for 7 years, and with fine of 5,000 rupees.     | Ditto          | Ditto    | Ditto.                         |
| 294  | Obscene songs                                                                                                                                                      | Imprisonment for 3 months, or fine or both.                                                                                                                                                               | Ditto          | Ditto    | Ditto.                         |
| 294A | Keeping a lottery office                                                                                                                                           | Imprisonment for 6 months, or fine, or both.                                                                                                                                                              | Non-cognizable | Ditto    | Ditto.                         |
|      | Publishing proposals relating to lotteries.                                                                                                                        | Fine of 1,000 rupees                                                                                                                                                                                      | Ditto          | Ditto    | Ditto.                         |

| 1                                              | 2                                                                                                                                                                                       | 3                                                                                        | 4              | 5            | 6                              |
|------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|----------------|--------------|--------------------------------|
| CHAPTER XV.—OFFENCES RELATING TO RELIGION      |                                                                                                                                                                                         |                                                                                          |                |              |                                |
| 295                                            | Destroying, damaging or defiling a place of worship or sacred object with intent to insult the religion of any class of persons.                                                        | Imprisonment for 2 years, or fine or both.                                               | Cognizable     | Non-Bailable | Any Magistrate.                |
| 295A                                           | Maliciously insulting the religion or the religious beliefs of any class.                                                                                                               | Imprisonment for 3 years, or fine, or both.                                              | Ditto          | Ditto        | Magistrate of the first class. |
| 296                                            | Causing a disturbance to an assembly engaged in religious worship.                                                                                                                      | Imprisonment for 1 year, or fine, or both.                                               | Ditto          | Bailable     | Any Magistrate.                |
| 297                                            | Trespassing in place of worship or sepulcher, disturbing funeral with intention to wound the feelings or to insult the religion of any person, or offering indignity to a human corpse. | Ditto                                                                                    | Ditto          | Ditto        | Ditto.                         |
| 298                                            | Uttering any word or making any sound in the hearing or making any gesture, or placing any object in the sight of any person, with intention to wound his religious feeling.            | Ditto                                                                                    | Non-cognizable | Ditto        | Ditto.                         |
| CHAPTER XVI.—OFFENCES AFFECTING THE HUMAN BODY |                                                                                                                                                                                         |                                                                                          |                |              |                                |
| 302                                            | Murder                                                                                                                                                                                  | Death, or imprisonment for life, and fine.                                               | Cognizable     | Non-bailable | Court of Session.              |
| 303                                            | Murder by a person under sentence of imprisonment for life.                                                                                                                             | Death                                                                                    | Ditto          | Ditto        | Ditto.                         |
| 304                                            | Culpable homicide not amounting to murder, if act by which the death is caused is done with intention of causing death, etc.                                                            | Imprisonment for life, or imprisonment for 10 years and fine.                            | Ditto          | Ditto        | Ditto.                         |
|                                                | If act is done with knowledge that it is likely to cause death, but without any intention to cause death, etc.                                                                          | Imprisonment for 10 years, or fine, or both.                                             | Ditto          | Ditto        | Ditto.                         |
| 304A                                           | Causing death by rash or negligent act.                                                                                                                                                 | Imprisonment for 2 years, or fine, or both.                                              | Ditto          | Bailable     | Magistrate of the first class. |
| <sup>1</sup> [304B                             | Dowry death.                                                                                                                                                                            | Imprisonment of not less than seven years but which may extend to imprisonment for life. | Ditto          | Non-bailable | Court of Session.]             |
| 305                                            | Abetment of suicide committed by child, or insane or delirious person or an idiot, or a person intoxicated.                                                                             | Death, or imprisonment for life, or imprisonment for 10 years and fine.                  | Ditto          | Ditto        | Ditto.                         |
| 306                                            | Abetting the commission of suicide.                                                                                                                                                     | Imprisonment for 10 years and fine.                                                      | Ditto          | Ditto        | Ditto.                         |
| 307                                            | Attempt to murder                                                                                                                                                                       | Ditto                                                                                    | Ditto          | Ditto        | Ditto.                         |
|                                                | If such act causes hurt to any person.                                                                                                                                                  | Imprisonment for life, or imprisonment for 10 years and fine.                            | Ditto          | Ditto        | Ditto.                         |
|                                                | Attempt by life-convict to murder, if hurt is caused.                                                                                                                                   | Death, or imprisonment for 10 years and fine.                                            | Ditto          | Ditto        | Ditto.                         |
| 308                                            | Attempt to commit culpable homicide                                                                                                                                                     | Imprisonment for 3 years, or fine, or both.                                              | Ditto          | Ditto        | Ditto.                         |
|                                                | If such act causes hurt to any person                                                                                                                                                   | Imprisonment for 7 years, or fine, or both.                                              | Ditto          | Ditto        | Ditto.                         |

1. Ins. by Act 43 of 1986, s. 11 (w.e.f. 19.11.1986).

| 1                   | 2                                                                                                                                                                                   | 3                                                                                                                        | 4              | 5                    | 6                              |
|---------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------------|
| 309                 | Attempt to commit suicide.                                                                                                                                                          | Simple imprisonment for 1 year, or fine, or both.                                                                        | Cognizable     | Bailable             | Any Magistrate.                |
| 311                 | Being a thug.                                                                                                                                                                       | Imprisonment for life and fine.                                                                                          | Ditto          | Non-bailable         | Court of Session.              |
| 312                 | Causing miscarriage.                                                                                                                                                                | Imprisonment for 3 years, or fine, or both.                                                                              | Non-cognizable | Bailable             | Magistrate of the first class. |
|                     | If the woman be quick with child.                                                                                                                                                   | Imprisonment for 7 years and fine.                                                                                       | Ditto          | Ditto                | Ditto.                         |
| 313                 | Causing miscarriage without women's consent.                                                                                                                                        | Imprisonment for life, or imprisonment for 10 years and fine.                                                            | Cognizable     | Non-bailable         | Court of Session.              |
| 314                 | Death caused by an act done with intent to cause miscarriage.                                                                                                                       | Imprisonment for 10 years and fine.                                                                                      | Ditto          | Ditto                | Ditto.                         |
|                     | If act done without women's consent.                                                                                                                                                | Imprisonment for life, or as above.                                                                                      | Ditto          | Ditto                | Ditto.                         |
| 315                 | Act done with intent to prevent a child being born alive, or to cause it to die after its birth.                                                                                    | Imprisonment for 10 years, or fine, or both.                                                                             | Ditto          | Ditto                | Ditto.                         |
| 316                 | Causing death of a quick unborn child by an act amounting to culpable homicide.                                                                                                     | Imprisonment for 10 years and fine.                                                                                      | Ditto          | Ditto                | Ditto.                         |
| 317                 | Exposure of a child under 12 years of age by parent or person having care of it with intention of wholly abandoning it.                                                             | Imprisonment for 7 years, or fine, or both.                                                                              | Ditto          | Bailable             | Magistrate of the first class. |
| 318                 | Concealment of birth by secret disposal of dead body.                                                                                                                               | Imprisonment for 2 years, or fine, or both.                                                                              | Ditto          | Ditto                | Ditto.                         |
| 323                 | Voluntarily causing hurt.                                                                                                                                                           | Imprisonment for 1 year or fine of 1,000 rupees, or both.                                                                | Non-cognizable | Ditto                | Any Magistrate.                |
| 324                 | Voluntarily causing hurt by dangerous weapons or means.                                                                                                                             | Imprisonment for 3 years, or fine, or both.                                                                              | Cognizable     | Ditto                | Ditto.                         |
| 325                 | Voluntarily causing grievous hurt.                                                                                                                                                  | Imprisonment for 7 years and fine.                                                                                       | Ditto          | Ditto                | Ditto.                         |
| 326                 | Voluntarily causing grievous hurt by dangerous weapons or means.                                                                                                                    | Imprisonment for life, or imprisonment for 10 years and fine.                                                            | Ditto          | Non-bailable         | Magistrate of the first class. |
| <sup>1</sup> [326A] | Voluntarily causing grievous hurt by use of acid, etc.                                                                                                                              | Imprisonment for not less than 10 years but which may extend to imprisonment for life and fine to be paid to the victim. | Cognizable     | Non-bailable         | Court of Session               |
| 326B                | Voluntarily throwing or attempting to throw acid.                                                                                                                                   | Imprisonment for 5 years but which may extend to 7 years and with fine.                                                  | Cognizable     | Non-bailable         | Court of Session.]             |
| 327                 | Voluntarily causing hurt to extort property or a valuable security, or to constrain to do anything which is illegal or which may facilitate the commission of an offence.           | Imprisonment for 10 years and fine.                                                                                      | Ditto          | Ditto                | Ditto.                         |
| 328                 | Administering stupefying drug with intent to cause hurt, etc.                                                                                                                       | Ditto                                                                                                                    | Ditto          | Ditto                | Court of Session.              |
| 329                 | Voluntarily causing grievous hurt to extort property or a valuable security, or to constrain to do anything which is illegal, or which may facilitate the commission of an offence. | Imprisonment for life, or imprisonment for 10 years and fine.                                                            | Ditto          | Ditto                | Ditto.                         |
| 330                 | Voluntarily causing hurt to extort confession or information, or to compel restoration of property, etc.                                                                            | Imprisonment for 7 years and fine.                                                                                       | Ditto          | Bailable             | Magistrate of the first class. |
| 331                 | Voluntarily causing grievous hurt to extort confession or information, or to compel restoration of property, etc.                                                                   | Imprisonment for 10 years and fine.                                                                                      | Ditto          | Non-bailable         | Court of Session.              |
| 332                 | Voluntarily causing hurt to deter public servant from his duty.                                                                                                                     | Imprisonment for 3 years or fine or both.                                                                                | Ditto          | <sup>2</sup> [Ditto] | Magistrate of the first class. |
| 333                 | Voluntarily causing grievous hurt to deter public servant from his duty.                                                                                                            | Imprisonment for 10 years and fine.                                                                                      | Ditto          | <sup>3</sup> [Ditto] | Court of Session.              |

1. Ins. by Act 13 of 2013, s. 24 (w.e.f. 3-2-2013).

2. Subs. by Act 25 of 2005, s. 42(f)(v), occurring in column 5, relating to s. 332, for "Bailable" (w.e.f. 23-6-2006).

3. Subs. by s. 42(f)(vi), *ibid.*, occurring in column 5, relating to s. 333, for "Non-bailable", (w.e.f. 23-6-2006).



| 1                  | 2                                                                                                                                          | 3                                                                                                                     | 4              | 5                           | 6                              |
|--------------------|--------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------|----------------|-----------------------------|--------------------------------|
| 334                | Voluntarily causing hurt on grave and sudden provocation, not intending to hurt any other than the person who gave the provocation.        | Imprisonment for 1 month, or fine of 500 rupees, or both.                                                             | Non-cognizable | Bailable                    | Any Magistrate.                |
| 335                | Causing grievous hurt on grave and sudden provocation, not intending to hurt any other than the person who gave the provocation.           | Imprisonment for 4 years, or fine of 2,000 rupees, or both.                                                           | Cognizable     | Ditto                       | Magistrate of the first class. |
| 336                | Doing any act which endangers human life or the personal safety of others.                                                                 | Imprisonment for 3 months, or fine of 250 rupees, or both.                                                            | Ditto          | Ditto                       | Any Magistrate.                |
| 337                | Causing hurt by an act which endangers human life, etc.                                                                                    | Imprisonment for 6 months, or fine of 500 rupees, or both.                                                            | Ditto          | Ditto                       | Ditto.                         |
| 338                | Causing grievous hurt by an act which endangers human life, etc.                                                                           | Imprisonment for 2 years, or fine of 1,000 rupees, or both.                                                           | Ditto          | Ditto                       | Ditto.                         |
| 341                | Wrongfully restraining any person.                                                                                                         | Simple imprisonment for 1 month, or fine of 500 rupees, or both.                                                      | Ditto          | Ditto                       | Ditto.                         |
| 342                | Wrongfully confining any person.                                                                                                           | Imprisonment for 1 year, or fine of 1,000 rupees, or both.                                                            | Ditto          | Ditto                       | Ditto.                         |
| 343                | Wrongfully confining for three or more days.                                                                                               | Imprisonment for 2 years, or fine, or both.                                                                           | Ditto          | Ditto                       | Ditto.                         |
| 344                | Wrongfully confining for 10 or more days.                                                                                                  | Imprisonment for 3 years and fine.                                                                                    | Ditto          | Ditto                       | Ditto.                         |
| 345                | Keeping any person in wrongful confinement, knowing that a writ has been issued for his liberation.                                        | Imprisonment for 2 years, in addition to imprisonment under any other section.                                        | Ditto          | Ditto                       | Magistrate of the first class. |
| 346                | Wrongful confinement in secret.                                                                                                            | Ditto                                                                                                                 | Ditto          | Ditto                       | Ditto.                         |
| 347                | Wrongful confinement for the purpose of extorting property, or constraining to an illegal act, etc.                                        | Imprisonment for 3 years and fine.                                                                                    | Ditto          | Ditto                       | Any Magistrate.                |
| 348                | Wrongful confinement for the purpose of extorting confession or information, or of compelling restoration of property, etc.                | Ditto                                                                                                                 | Ditto          | Ditto                       | Ditto.                         |
| 352                | Assault or use of criminal force otherwise than on grave provocation.                                                                      | Imprisonment for 3 months, or fine of 500 rupees, or both.                                                            | Non-cognizable | Ditto                       | Ditto.                         |
| 353                | Assault or use of criminal force to deter a public servant from discharge of his duty.                                                     | Imprisonment for 2 years, or fine, or both.                                                                           | Cognizable     | <sup>1</sup> [Non-bailable] | Ditto.                         |
| <sup>2</sup> [354] | Assault or use of criminal force to woman with intent to outrage her modesty.                                                              | Imprisonment of 1 year which may extend to 5 years, and with fine.                                                    | Cognizable     | Non-bailable                | Any Magistrate                 |
| 354A               | Sexual harassment of the nature of unwelcome physical contact and advances or a demand or request for sexual favours, showing pornography. | Imprisonment which may extend to 3 years or with fine or with both.                                                   | Cognizable     | Bailable                    | Any Magistrate                 |
|                    | Sexual harassment of the nature of making sexually coloured remark.                                                                        | Imprisonment which may extend to 1 year or with fine or with both.                                                    | Cognizable     | Bailable                    | Any Magistrate.                |
| 354B               | Assault or use of criminal force to woman with intent to disrobe.                                                                          | Imprisonment of not less than 3 years but which may extend to 7 years and with fine.                                  | Cognizable     | Non-bailable                | Any Magistrate.                |
| 354C               | Voyeurism.                                                                                                                                 | Imprisonment of not less than 1 year but which may extend to 3 years and with fine for first conviction.              | Cognizable     | Bailable                    | Any Magistrate.                |
|                    |                                                                                                                                            | Imprisonment of not less than 3 years but which may extend 7 years and with fine for second or subsequent conviction. | Cognizable     | Non-bailable                | Any Magistrate                 |
| 354D               | Stalking.                                                                                                                                  | Imprisonment up to 3 years and with fine for first conviction.                                                        | Cognizable     | Bailable                    | Any Magistrate.                |
|                    |                                                                                                                                            | Imprisonment up to 5 years and with fine for second or subsequent conviction.                                         | Cognizable     | Non-bailable                | Any Magistrate.]               |
| 355                | Assault or criminal force with intent to dishonor a person, otherwise than on grave and sudden provocation.                                | Ditto                                                                                                                 | Non-cognizable | Ditto                       | Ditto.                         |
| 356                | Assault or criminal force in attempt to commit theft of property worn or carried by a person.                                              | Ditto                                                                                                                 | Cognizable     | Ditto                       | Ditto.                         |
| 357                | Assault or use of criminal force in attempt wrongfully to confine a person.                                                                | Imprisonment for 1 year, or fine of 1,000 rupees, or both.                                                            | Ditto          | Ditto                       | Ditto.                         |
| 358                | Assault or use of criminal force on grave and sudden provocation.                                                                          | Simple imprisonment for one month, or fine of 200 rupees, or both.                                                    | Non-cognizable | Ditto                       | Ditto.                         |
| 363                | Kidnapping                                                                                                                                 | Imprisonment for 7 years and fine.                                                                                    | Cognizable     | Ditto                       | Magistrate of the first class. |

1. Subs. by Act 25 of 2005, s. 42 (f) (vii), occurring in column 5, relating to s. 353, for "Ditto" (w.e.f. 23-6-2006).

2. Subs. by Act 13 of 2013, s. 24, for entry relating to s. 354 (w.e.f. 3-2-2013).

| 1                  | 2                                                                                                                        | 3                                                                                                   | 4          | 5            | 6                                                      |
|--------------------|--------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------|------------|--------------|--------------------------------------------------------|
| 363A               | Kidnapping or obtaining the custody of a minor in order that such minor may be employed or used for purposes of begging. | Imprisonment for 10 years and fine.                                                                 | Cognizable | Non-bailable | Magistrate of the first class.                         |
|                    | Maiming a minor in order that such minor may be employed or used for purposes of begging.                                | Imprisonment for life and fine.                                                                     | Ditto      | Ditto        | Court of Session.                                      |
| 364                | Kidnapping or abducting in order to murder.                                                                              | Imprisonment for life, or rigorous imprisonment for 10 years and fine.                              | Ditto      | Ditto        | Ditto.                                                 |
| <sup>1</sup> [364A | Kidnapping for ransom, etc.                                                                                              | Death, or imprisonment for life and fine.                                                           | Ditto      | Ditto        | Ditto.]                                                |
| 365                | Kidnapping or abducting with intent secretly and wrongfully to confine a person.                                         | Imprisonment for 7 years and fine.                                                                  | Ditto      | Ditto        | Magistrate of the first class.                         |
| 366                | Kidnapping or abducting a woman to compel her marriage or to cause her defilement, etc.                                  | Imprisonment for 10 years and fine.                                                                 | Ditto      | Ditto        | Court of Session.                                      |
| 366A               | Procuration of a minor girl.                                                                                             | Ditto                                                                                               | Ditto      | Ditto        | Ditto.                                                 |
| 366B               | Importation of a girl from foreign country.                                                                              | Ditto                                                                                               | Ditto      | Ditto        | Ditto.                                                 |
| 367                | Kidnapping or abducting in order to subject a person to grievous hurt, slavery, etc.                                     | Ditto                                                                                               | Ditto      | Ditto        | Ditto.                                                 |
| 368                | Concealing or keeping in confinement a kidnapped person.                                                                 | Punishment for kidnapping or abduction.                                                             | Ditto      | Ditto        | Court by which the kidnapping or abduction is triable. |
| 369                | Kidnapping or abducting a child with intent to take property from the person of such child.                              | Imprisonment for 7 years and fine.                                                                  | Ditto      | Ditto        | Magistrate of the first class.                         |
| <sup>2</sup> [370  | Trafficking of person.                                                                                                   | Imprisonment of not less than 7 years but which may extend to 10 years and with fine.               | Cognizable | Non-bailable | Court of Session.                                      |
|                    | Trafficking of more than one person.                                                                                     | Imprisonment of not less than 10 years but which may extend to imprisonment for life and with fine. | Cognizable | Non-bailable | Court of Session.                                      |
|                    | Trafficking of a minor.                                                                                                  | Imprisonment of not less than 10 years but which may extend to imprisonment for life and with fine. | Cognizable | Non-bailable | Court of Session.                                      |
|                    | Trafficking of more than one minor.                                                                                      | Imprisonment of not less than 14 years but which may extend to imprisonment for life and with fine. | Cognizable | Non-bailable | Court of Session.                                      |
|                    | Person convicted of offence of trafficking of minor on more than one occasion.                                           | Imprisonment for life which shall mean the remainder of that person's natural life and with fine.   | Cognizable | Non-bailable | Court of Session.                                      |
|                    | Public servant or a police officer involved in trafficking of minor.                                                     | Imprisonment for life which shall mean the remainder of that person's natural life and with fine.   | Cognizable | Non-bailable | Court of Session.                                      |
| 370A               | Exploitation of a trafficked child.                                                                                      | Imprisonment of not less than 5 years but which may extend to 7 years and with fine.                | Cognizable | Non-bailable | Court of Session.                                      |
|                    | Exploitation of a trafficked person.                                                                                     | Imprisonment of not less than 3 years but which may extend to 5 years and with fine.                | Cognizable | Non-bailable | Court of Session.]                                     |

1. Ins. by Act 42 of 1993, s. 4, (w.e.f. 22-5-1993).

2. Subs. by Act 13 of 2013, s. 24, for entries relating to s. 370 (w.e.f. 3-2-2013).

| 1                               | 2                                                                                                                                                                                                                                                                                                                                                                                                                       | 3                                                                                                                                                                                                                  | 4          | 5            | 6                  |
|---------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|--------------|--------------------|
| 371                             | Habitual dealing in slaves.                                                                                                                                                                                                                                                                                                                                                                                             | Imprisonment for life, or imprisonment for 10 years and fine.                                                                                                                                                      | Cognizable | Non-bailable | Court of Session.  |
| 372                             | Selling or letting to hire a minor for purposes of prostitution, etc.                                                                                                                                                                                                                                                                                                                                                   | Imprisonment for 10 years and fine.                                                                                                                                                                                | Ditto      | Ditto        | Ditto.             |
| 373                             | Buying or obtaining possession of a minor for the same purposes.                                                                                                                                                                                                                                                                                                                                                        | Ditto                                                                                                                                                                                                              | Ditto      | Ditto        | Ditto.             |
| 374                             | Unlawful compulsory labour.                                                                                                                                                                                                                                                                                                                                                                                             | Imprisonment for 1 year, or fine, or both.                                                                                                                                                                         | Ditto      | Bailable     | Any Magistrate.    |
| <sup>1</sup> [ <sup>2</sup> 376 | Rape.                                                                                                                                                                                                                                                                                                                                                                                                                   | Rigorous imprisonment of not less than 10 years but which may extend to imprisonment for life and with fine.                                                                                                       | Cognizable | Non-bailable | Court of Session.  |
|                                 | Rape by a police officer or a public servant or member of armed forces or a person being on the management or on the staff of a jail, remand home or other place of custody or women's or children's institution or by a person on the management or on the staff of a hospital, and rape committed by a person in a position of trust or authority towards the person raped or by a near relative of the person raped. | Rigorous imprisonment of not less than 10 years but which may extend to imprisonment for life which shall mean the remainder of that person's natural life and with fine.                                          | Cognizable | Non-bailable | Court of Session.  |
|                                 | Persons committing offence of rape on a woman under sixteen years of age.                                                                                                                                                                                                                                                                                                                                               | Rigorous imprisonment for a term which shall not be less than 20 years but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life and with fine. | Cognizable | Non-bailable | Court of Session.] |
| 376A                            | Person committing an offence of rape and inflicting injury which causes death or causes the woman to be in a persistent vegetative state.                                                                                                                                                                                                                                                                               | Rigorous imprisonment of not less than 20 years but which may extend to imprisonment for life which shall mean imprisonment for the remainder of that person's natural life or with death.                         | Cognizable | Non-bailable | Court of Session.  |
| <sup>3</sup> [376AB             | Person committing an offence of rape on a woman under twelve years of age.                                                                                                                                                                                                                                                                                                                                              | Rigorous imprisonment of not less than 20 years but which may extend to imprisonment for life which shall mean imprisonment for that person's natural life and with fine or with death.                            | Cognizable | Non-bailable | Court of Session.] |

1. Subs. by Act 13 of 2013, s. 24, for entries relating to ss. 376, 376A, 376B, 376C and 376D (w.e.f. 3-2-2013).

2. Subs. by Act 22 of 2018, s. 24, for entry 376 (w.e.f. 21-4-2018).

3. Ins. by s. 24, *ibid.* (w.e.f. 21-4-2018).

| 1                   | 2                                                              | 3                                                                                                                                                                                                                    | 4          | 5            | 6                               |
|---------------------|----------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|--------------|---------------------------------|
| 376B                | Sexual intercourse by husband upon his wife during separation. | Imprisonment for not less than 2 years but which may extend to 7 years and with fine.                                                                                                                                | Cognizable | Bailable     | Court of Session.               |
| 376C                | Sexual intercourse by a person in authority.                   | Rigorous imprisonment for not less than 5 years but which may extend to 10 years and with fine.                                                                                                                      | Cognizable | Non-bailable | Court of Session.               |
| 376D                | Gang rape                                                      | Rigorous imprisonment for not less than 20 years but which may extend to imprisonment for life which shall mean imprisonment for the remainder of that person's natural life and with fine to be paid to the victim. | Cognizable | Non-bailable | Court of Session.               |
| <sup>1</sup> [376DA | Gang rape on a woman under sixteen years of age.               | Imprisonment for life which shall mean imprisonment for the remainder of that person's natural life and with fine.                                                                                                   | Cognizable | Non-bailable | Court of Session.               |
| 376DB               | Gang rape on woman under twelve years of age.                  | Imprisonment for life which shall mean imprisonment for the remainder of that person's natural life and with fine or with death.                                                                                     | Cognizable | Non-bailable | Court of Session.]              |
| 376E                | Repeat offenders.                                              | Imprisonment for life which shall mean imprisonment for the remainder of that person's natural life or with death.                                                                                                   | Cognizable | Non-bailable | Court of Session.]              |
| <sup>2</sup> [377   | Unnatural offences                                             | Imprisonment for life, or imprisonment for 10 years and fine.                                                                                                                                                        | Cognizable | Non-bailable | Magistrate of the first class.] |

#### CHAPTER XVII.—OFFENCES AGAINST PROPERTY

|     |                                                                                                                                                                                                                                                        |                                              |            |              |                                |
|-----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------|------------|--------------|--------------------------------|
| 379 | Theft                                                                                                                                                                                                                                                  | Imprisonment for 3 years, or fine, or both.  | Cognizable | Non-bailable | Any Magistrate.                |
| 380 | Theft in a building, tent or vessel                                                                                                                                                                                                                    | Imprisonment for 7 years and fine.           | Ditto      | Ditto        | Ditto.                         |
| 381 | Theft by clerk or servant of property in possession of master or employer.                                                                                                                                                                             | Ditto                                        | Ditto      | Ditto        | Ditto.                         |
| 382 | Theft, after preparation having been made for causing death, or hurt, or restraint, or fear of death, or of hurt, or of restraint, in order to the committing of such theft, or to retiring after committing it, or to retaining property taken by it. | Rigorous imprisonment for 10 years and fine. | Ditto      | Ditto        | Magistrate of the first class. |

1. Ins. by Act 22 of 2018, s. 24 (w.e.f. 21-4-2018).

2. Subs. by Act 30 of 2001, s. 3 and the Second Sch., for the entries relating to s. 377 (w.e.f. 3-9-2001).

| 1   | 2                                                                                                                                                             | 3                                                                             | 4          | 5            | 6                              |
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| 384 | Extortion                                                                                                                                                     | Imprisonment for 3 years, or fine, or both.                                   | Ditto      | Ditto        | Any Magistrate.                |
| 385 | Putting or attempting to put in fear of injury, in order to commit extortion.                                                                                 | Imprisonment for 2 years, or fine, or both.                                   | Ditto      | Bailable     | Ditto.                         |
| 386 | Extortion by putting a person in fear of death or grievous hurt.                                                                                              | Imprisonment for 10 years and fine.                                           | Ditto      | Non-bailable | Magistrate of the first class. |
| 387 | Putting or attempting to put a person in fear of death or grievous hurt in order to commit extortion.                                                         | Imprisonment for 7 years and fine.                                            | Ditto      | Ditto        | Ditto.                         |
| 388 | Extortion by threat of accusation of an offence punishable with death, imprisonment for life, or imprisonment for 10 years.                                   | Imprisonment for 10 years and fine.                                           | Ditto      | Bailable     | Ditto.                         |
|     | If the offence threatened be an unnatural offence.                                                                                                            | Imprisonment for life                                                         | Ditto      | Ditto        | Ditto.                         |
| 389 | Putting a person in fear of accusation of an offence punishable with death, imprisonment for life, or imprisonment for 10 years in order to commit extortion. | Imprisonment for 10 years and fine.                                           | Ditto      | Ditto        | Ditto.                         |
|     | If the offence be an unnatural offence.                                                                                                                       | Imprisonment for life.                                                        | Ditto      | Ditto        | Ditto.                         |
| 392 | Robbery                                                                                                                                                       | Rigorous imprisonment for 10 years and fine.                                  | Ditto      | Non-bailable | Ditto.                         |
|     | If committed on the highway between sunset and sunrise.                                                                                                       | Rigorous imprisonment for 14 years and fine.                                  | Ditto      | Ditto        | Ditto.                         |
| 393 | Attempt to commit robbery.                                                                                                                                    | Rigorous imprisonment for 7 years and fine.                                   | Ditto      | Ditto        | Ditto.                         |
| 394 | Person voluntarily causing hurt in committing or attempting to commit robbery, or any other person jointly concerned in such robbery.                         | Imprisonment for life, or rigorous imprisonment for 10 years and fine.        | Ditto      | Ditto        | Ditto.                         |
| 395 | Dacoity                                                                                                                                                       | Ditto                                                                         | Ditto      | Ditto        | Court of Session.              |
| 396 | Murder in dacoity                                                                                                                                             | Death, imprisonment for life, or rigorous imprisonment for 10 years and fine. | Ditto      | Ditto        | Ditto.                         |
| 397 | Robbery or dacoity, with attempt to cause death or grievous hurt.                                                                                             | Rigorous imprisonment for not less than 7 years.                              | Ditto      | Ditto        | Ditto.                         |
| 398 | Attempt to commit robbery or dacoity when armed with deadly weapon.                                                                                           | Ditto                                                                         | Ditto      | Ditto        | Ditto.                         |
| 399 | Making preparation to commit dacoity.                                                                                                                         | Rigorous imprisonment for 10 years and fine.                                  | Cognizable | Non-bailable | Court of Session.              |
| 400 | Belonging to a gang of persons associated for the purpose of habitually committing dacoity.                                                                   | Imprisonment for life, or rigorous imprisonment for 10 years and fine.        | Ditto      | Ditto        | Ditto.                         |
| 401 | Belonging to a wandering gang of persons associated for the purpose of habitually committing thefts.                                                          | Rigorous imprisonment for 7 years and fine.                                   | Ditto      | Ditto        | Magistrate of the first class. |
| 402 | Being one of five or more persons assembled for the purpose of committing dacoity.                                                                            | Ditto                                                                         | Ditto      | Ditto        | Court of Session.              |

| 1   | 2                                                                                                                                                                                                   | 3                                                                      | 4              | 5            | 6                               |
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| 403 | Dishonest misappropriation of movable property, or converting it to one's own use.                                                                                                                  | Imprisonment for 2 years, or fine, or both.                            | Non-cognizable | Bailable     | Any Magistrate.                 |
| 404 | Dishonest misappropriation of property, knowing that it was in possession of a deceased person at his death, and that it has not since been in the possession of any person legally entitled to it. | Imprisonment for 3 years and fine.                                     | Ditto          | Ditto        | Magistrate of the first class.. |
|     | If by clerk or person employed by deceased                                                                                                                                                          | Imprisonment for 7 years and fine.                                     | Ditto          | Ditto        | Ditto.                          |
| 406 | Criminal breach of trust                                                                                                                                                                            | Imprisonment for 3 years, or fine, or both.                            | Cognizable     | Non-bailable | Ditto.                          |
| 407 | Criminal breach of trust by a carrier, wharfinger, etc.                                                                                                                                             | Imprisonment for 7 years and fine.                                     | Ditto          | Ditto        | Ditto.                          |
| 408 | Criminal breach of trust by a clerk or servant.                                                                                                                                                     | Ditto                                                                  | Ditto          | Ditto        | Ditto                           |
| 409 | Criminal breach of trust by public servant or by banker, merchant or agent, etc.                                                                                                                    | Imprisonment for life, or imprisonment for 10 years and fine.          | Ditto          | Ditto        | Ditto.                          |
| 411 | Dishonestly receiving stolen property knowing it to be stolen.                                                                                                                                      | Imprisonment for 3 years, or fine, or both.                            | Ditto          | Ditto        | Any Magistrate.                 |
| 412 | Dishonestly receiving stolen property, knowing that it was obtained by dacoity.                                                                                                                     | Imprisonment for life, or rigorous imprisonment for 10 years and fine. | Ditto          | Ditto        | Court of Session.               |
| 413 | Habitually dealing in stolen property.                                                                                                                                                              | Imprisonment for life, or imprisonment for 10 years and fine.          | Ditto          | Ditto        | Ditto.                          |
| 414 | Assisting in concealment or disposal of stolen property, knowing it to be stolen.                                                                                                                   | Imprisonment for 3 years, or fine, or both.                            | Ditto          | Ditto        | Any Magistrate.                 |
| 417 | Cheating                                                                                                                                                                                            | Imprisonment for 1 year, or fine, or both.                             | Non-cognizable | Bailable     | Ditto.                          |
| 418 | Cheating a person whose interest the offender was bound, either by law or by legal contract, to protect.                                                                                            | Imprisonment for 3 years, or fine, or both.                            | Ditto          | Ditto        | Ditto.                          |
| 419 | Cheating by personation .                                                                                                                                                                           | Ditto                                                                  | Cognizable     | Ditto        | Ditto.                          |
| 420 | Cheating and thereby dishonestly inducing delivery of property, or the making, alteration or destruction of a valuable security.                                                                    | Imprisonment for 7 years and fine.                                     | Ditto          | Non-bailable | Magistrate of the first class.  |
| 421 | Fraudulent removal or concealment of property, etc., to prevent distribution among creditors.                                                                                                       | Imprisonment for 2 years, or fine, or both.                            | Non-cognizable | Bailable     | Any Magistrate.                 |
| 422 | Fraudulently preventing from being made available for his creditors a debt or demand due to the offender.                                                                                           | Imprisonment for 2 years, or fine, or both.                            | Non-cognizable | Bailable     | Any Magistrate.                 |
| 423 | Fraudulent execution of deed of transfer containing a false statement of consideration.                                                                                                             | Ditto                                                                  | Ditto          | Ditto        | Ditto.                          |
| 424 | Fraudulent removal or concealment of property, of himself or any other person or assisting in the doing thereof, or dishonestly releasing any demand or claim to which he is entitled.              | Ditto                                                                  | Ditto          | Ditto        | Ditto.                          |

| 1   | 2                                                                                                                                                                                   | 3                                                             | 4              | 5            | 6                              |
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| 426 | Mischief                                                                                                                                                                            | Imprisonment for 3 months or fine, or both.                   | Ditto          | Ditto        | Ditto.                         |
| 427 | Mischief, and thereby causing damage to the amount of 50 rupees or upwards.                                                                                                         | Imprisonment for 2 years, or fine, or both.                   | Ditto          | Ditto        | Ditto.                         |
| 428 | Mischief by killing, poisoning, maiming or rendering useless any animal of the value of 10 rupees or upwards.                                                                       | Ditto                                                         | Cognizable     | Ditto        | Ditto.                         |
| 429 | Mischief by killing, poisoning, maiming or rendering useless any elephant, camel, horse, etc., whatever may be its value, or any other animal of the value of 50 rupees or upwards. | Imprisonment for 5 years, or fine, or both.                   | Ditto          | Ditto        | Magistrate of the first class. |
| 430 | Mischief by causing diminution of supply of water for agricultural purposes, etc.                                                                                                   | Ditto                                                         | Ditto          | Ditto        | Ditto.                         |
| 431 | Mischief by injury to public road, bridge, navigable river, or navigable channel, and rendering it impassable or less safe for travelling or conveying property.                    | Ditto                                                         | Ditto          | Ditto        | Ditto.                         |
| 432 | Mischief by causing inundation or obstruction to public drainage attended with damage.                                                                                              | Ditto                                                         | Ditto          | Ditto        | Ditto.                         |
| 433 | Mischief by destroying or moving or rendering less useful a lighthouse or seamark, or by exhibiting false lights.                                                                   | Imprisonment for 7 years, or fine, or both.                   | Ditto          | Ditto        | Ditto.                         |
| 434 | Mischief by destroying or moving, etc., a landmark fixed by public authority.                                                                                                       | Imprisonment for 1 year, or fine, or both.                    | Non-cognizable | Ditto        | Any Magistrate.                |
| 435 | Mischief by fire or explosive substance with intent to cause damage to an amount of 100 rupees or upwards, or, in case of agricultural produce, 10 rupees or upwards.               | Imprisonment for 7 years and fine.                            | Cognizable     | Ditto        | Magistrate of the first class. |
| 436 | Mischief by fire or explosive substance with intent to destroy a house, etc.                                                                                                        | Imprisonment for life, or imprisonment for 10 years and fine. | Ditto          | Non-bailable | Court of Session.              |
| 437 | Mischief with intent to destroy or make unsafe a decked vessel or a vessel of 20 tonnes burden.                                                                                     | Imprisonment for 10 years and fine.                           | Ditto          | Ditto        | Ditto.                         |
| 438 | The mischief described in the last section when committed by fire or any explosive substance.                                                                                       | Imprisonment for life, or imprisonment for 10 years and fine. | Ditto          | Ditto        | Ditto.                         |
| 439 | Running vessel ashore with intent to commit theft, etc.                                                                                                                             | Imprisonment for 10 years and fine.                           | Ditto          | Ditto        | Ditto.                         |
| 440 | Mischief committed after preparation made for causing death, or hurt, etc.                                                                                                          | Imprisonment for 5 years and fine.                            | Ditto          | Bailable     | Magistrate of the first class. |
| 447 | Criminal trespass                                                                                                                                                                   | Imprisonment for 3 months, or fine of 500 rupees, or both.    | Ditto          | Ditto        | Any Magistrate.                |
| 448 | House-trespass                                                                                                                                                                      | Imprisonment for 1 year, or fine of 1,000 rupees, or both.    | Ditto          | Ditto        | Ditto.                         |

| 1   | 2                                                                                                                                                | 3                                                                         | 4              | 5                        | 6                                        |
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| 449 | House-trespass in order to the commission of an offence punishable with death.                                                                   | Imprisonment for life, or rigorous imprisonment for 10 years and fine.    | Cognizable     | Non-bailable             | Court of Session.                        |
| 450 | House-trespass in order to the commission of an offence punishable with imprisonment for life.                                                   | Imprisonment for 10 years and fine.                                       | Ditto          | Ditto                    | Ditto.                                   |
| 451 | House-trespass in order to the commission of an offence punishable with imprisonment. If the offence is theft                                    | Imprisonment for 2 years and fine.<br>Imprisonment for 7 years and fine.  | Ditto<br>Ditto | Bailable<br>Non-bailable | Any Magistrate.<br>Ditto.                |
| 452 | House-trespass, having made preparation for causing hurt, assault, etc.                                                                          | Ditto                                                                     | Ditto          | Ditto                    | Ditto.                                   |
| 453 | Lurking house-trespass or house-breaking.                                                                                                        | Imprisonment for 2 years and fine.                                        | Ditto          | Ditto                    | Ditto.                                   |
| 454 | Lurking house-trespass or house-breaking in order to the commission of an offence punishable with imprisonment. If the offence be theft          | Imprisonment for 3 years and fine.<br>Imprisonment for 10 years and fine. | Ditto<br>Ditto | Ditto<br>Ditto           | Ditto.<br>Magistrate of the first class. |
| 455 | Lurking house-trespass or house-breaking after preparation made for causing hurt, assault, etc.                                                  | Ditto                                                                     | Ditto          | Ditto                    | Ditto.                                   |
| 456 | Lurking house-trespass or house-breaking by night.                                                                                               | Imprisonment for 3 years and fine.                                        | Ditto          | Ditto                    | Any Magistrate.                          |
| 457 | Lurking house-trespass or house-breaking by night in order to the commission of an offence punishable with imprisonment. If the offence is theft | Imprisonment for 5 years and fine.<br>Imprisonment for 14 years and fine. | Ditto<br>Ditto | Ditto<br>Ditto           | Magistrate of the first class.<br>Ditto. |
| 458 | Lurking house-trespass or house-breaking by night, after preparation made for causing hurt, etc.                                                 | Ditto                                                                     | Ditto          | Ditto                    | Ditto.                                   |
| 459 | Grievous hurt caused whilst committing lurking house-trespass or house-breaking.                                                                 | Imprisonment for life, or imprisonment for 10 years and fine.             | Ditto          | Ditto                    | Court of Session.                        |
| 460 | Death or grievous hurt caused by one of several persons jointly concerned in house-breaking by night, etc.                                       | Ditto                                                                     | Ditto          | Ditto                    | Ditto.                                   |
| 461 | Dishonestly breaking open or unfastening any closed receptacle containing or supposed to contain property.                                       | Imprisonment for 2 years or fine, or both.                                | Ditto          | Ditto                    | Any Magistrate.                          |
| 462 | Being entrusted with any closed receptacle containing or supposed to contain any property, and fraudulently opening the same.                    | Imprisonment for 3 years or fine, or both.                                | Ditto          | Bailable                 | Ditto                                    |

CHAPTER XVIII.—OFFENCES RELATING TO DOCUMENTS AND TO PROPERTY MARKS

|     |                                                                                                                             |                                                               |                |              |                                |
|-----|-----------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------|----------------|--------------|--------------------------------|
| 465 | Forgery                                                                                                                     | Imprisonment for 2 years, or fine, or both.                   | Non-cognizable | Bailable     | Magistrate of the first class. |
| 466 | Forgery of a record of a Court of Justice or of a Registrar of Births, etc., kept by a public servant.                      | Imprisonment for 7 years and fine                             | Ditto          | Non-bailable | Ditto.                         |
| 467 | Forgery of a valuable security, will, or authority to make or transfer any valuable security, or to receive any money, etc. | Imprisonment for life, or imprisonment for 10 years and fine. | Ditto          | Ditto        | Ditto.                         |
|     | When the valuable security is a promissory note of the Central Government.                                                  | Ditto                                                         | Cognizable     | Ditto        | Ditto.                         |



| 1    | 2                                                                                                                                                                                                                                                  | 3                                                            | 4              | 5            | 6                              |
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| 468  | Forgery for the purpose of cheating.                                                                                                                                                                                                               | Imprisonment for 7 years and fine.                           | Cognizable     | Non-bailable | Magistrate of the first class. |
| 469  | Forgery for the purpose of harming the reputation of any person or knowing that it is likely to be used for that purpose.                                                                                                                          | Imprisonment for 3 years and fine.                           | Ditto          | Bailable     | Ditto.                         |
| 471  | Using as genuine a forged document which is known to be forged.                                                                                                                                                                                    | Punishment for forgery of such document.                     | Ditto          | Ditto        | Ditto.                         |
|      | When the forged document is a promissory note of the Central Government.                                                                                                                                                                           | Ditto                                                        | Ditto          | Ditto        | Ditto.                         |
| 472  | Making or counterfeiting a seal, plate, etc., with intent to commit a forgery punishable under section 467 of the Indian Penal Code, or possessing with like intent any such seal, plate, etc., knowing the same to be counterfeit.                | Imprisonment for life, or imprisonment for 7 years and fine. | Ditto          | Ditto        | Ditto.                         |
| 473  | Making or counterfeiting a seal, plate, etc., with intent to commit a forgery punishable otherwise than under section 467 of the Indian Penal Code, or possessing with like intent any such seal, plate, etc., knowing the same to be counterfeit. | Imprisonment for 7 years and fine.                           | Ditto          | Ditto        | Ditto.                         |
| 474  | Having possession of a document, knowing it to be forged, with intent to use it as genuine; if the document is one of the description mentioned in section 466 of the Indian Penal Code.                                                           | Ditto.                                                       | Ditto.         | Ditto.       | Ditto.                         |
|      | If the document is one of the description mentioned in section 467 of the Indian Penal Code.                                                                                                                                                       | Imprisonment for life, or imprisonment for 7 years and fine. | Non-cognizable | Ditto        | Ditto.                         |
| 475  | Counterfeiting a device or mark used for authenticating documents described in section 467 of the Indian Penal Code, or possessing counterfeit marked material.                                                                                    | Ditto.                                                       | Ditto.         | Ditto.       | Ditto.                         |
| 476  | Counterfeiting a device or mark used for authenticating documents other than those described in section 467 of the Indian Penal Code, or possessing counterfeit marked material.                                                                   | Imprisonment for 7 years and fine.                           | Ditto          | Non-bailable | Ditto.                         |
| 477  | Fraudulently destroying or defacing, or attempting to destroy or deface, or secreting, a will, etc.                                                                                                                                                | Imprisonment for life, or imprisonment for 7 years and fine. | Ditto          | Ditto.       | Ditto.                         |
| 477A | Falsification of accounts.                                                                                                                                                                                                                         | Imprisonment for 7 years or fine, or both.                   | Ditto          | Bailable     | Ditto.                         |
| 482  | Using a false property mark with intent to deceive or injure any person.                                                                                                                                                                           | Imprisonment for 1 year, or fine, or both.                   | Ditto          | Ditto        | Any Magistrate.                |
| 483  | Counterfeiting a property mark used by another, with intent to cause damage or injury.                                                                                                                                                             | Imprisonment for 2 years, or fine, or both.                  | Ditto          | Ditto        | Ditto.                         |
| 484  | Counterfeiting a property mark used by a public servant, or any mark used by him to denote the manufacture, quality, etc., of any property.                                                                                                        | Imprisonment for 3 years and fine.                           | Ditto          | Ditto        | Magistrate of the first class. |
| 485  | Fraudulently making or having possession of any die, plate or other instrument for counterfeiting any public or private property mark.                                                                                                             | Imprisonment for 3 years, or fine, or both.                  | Ditto.         | Ditto.       | Ditto.                         |

| 1                                                    | 2                                                                                                                                                                                | 3                                                             | 4              | 5            | 6                              |
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| 486                                                  | Knowingly selling goods marked with a counterfeit property mark.                                                                                                                 | Imprisonment for 1 year, or fine, or both.                    | Non-cognizable | Bailable     | Any Magistrate.                |
| 487                                                  | Fraudulently making a false mark upon any package or receptacle containing goods, with intent to cause it to be believed that it contains goods, which it does not contain, etc. | Imprisonment for 3 years, or fine, or both.                   | Ditto          | Ditto        | Ditto.                         |
| 488                                                  | Making use of any such false mark.                                                                                                                                               | Ditto                                                         | Ditto          | Ditto        | Ditto.                         |
| 489                                                  | Removing, destroying or defacing property mark with intent to cause injury.                                                                                                      | Imprisonment for 1 year, or fine, or both.                    | Ditto          | Ditto        | Ditto.                         |
| 489A                                                 | Counterfeiting currency-notes or bank-notes.                                                                                                                                     | Imprisonment for life, or imprisonment for 10 years and fine. | Cognizable     | Non-bailable | Court of Session.              |
| 489B                                                 | Using as genuine forged or counterfeit currency-notes or bank-notes.                                                                                                             | Ditto                                                         | Ditto          | Ditto        | Ditto.                         |
| 489C                                                 | Possession of forged or counterfeit currency-notes or bank-notes.                                                                                                                | Imprisonment for 7 years, or fine, or both.                   | Ditto          | Bailable     | Ditto.                         |
| 489D                                                 | Making or possessing machinery, instrument or material for forging or counterfeiting currency-notes or bank-notes.                                                               | Imprisonment for life, or imprisonment for 10 years and fine. | Ditto          | Non-bailable | Ditto.                         |
| 489E                                                 | Making or using documents resembling currency-notes or bank-notes.                                                                                                               | Fine of 100 rupees.                                           | Non-cognizable | Bailable     | Any Magistrate.                |
|                                                      | On refusal to disclose the name and address of the printer.                                                                                                                      | Fine of 200 rupees.                                           | Ditto          | Ditto        | Ditto.                         |
| CHAPTER XIX.—CRIMINAL BREACH OF CONTRACTS OF SERVICE |                                                                                                                                                                                  |                                                               |                |              |                                |
| 491                                                  | Being bound to attend on or supply the wants of a person who is helpless from youth, unsoundness of mind or disease, and voluntarily omitting to do so.                          | Imprisonment for 3 months, or fine of 200 rupees, or both.    | Non-cognizable | Bailable     | Any Magistrate.                |
| CHAPTER XX.—OFFENCES RELATING TO MARRIAGE            |                                                                                                                                                                                  |                                                               |                |              |                                |
| 493                                                  | A man by deceit causing a woman not lawfully married to him to believe, that she is lawfully married to him and to cohabit with him in that belief.                              | Imprisonment for 10 years and fine.                           | Non-cognizable | Non-bailable | Magistrate of the first class. |
| 494                                                  | Marrying again during the life time of a husband or wife.                                                                                                                        | Imprisonment for 7 years and fine.                            | Ditto          | Bailable     | Ditto.                         |
| 495                                                  | Same offence with concealment of the former marriage from the person with whom subsequent marriage is contracted.                                                                | Imprisonment for 10 years and fine.                           | Ditto          | Ditto        | Ditto.                         |
| 496                                                  | A person with fraudulent intention going through the ceremony of being married, knowing that he is not thereby lawfully married.                                                 | Imprisonment for 7 years and fine.                            | Ditto          | Ditto        | Ditto.                         |
| 497                                                  | Adultery                                                                                                                                                                         | Imprisonment for 5 years, or fine, or both.                   | Ditto          | Ditto        | Ditto.                         |
| 498                                                  | Enticing or taking away or detaining with a criminal intent a married woman.                                                                                                     | Imprisonment for 2 years, or fine, or both.                   | Ditto          | Ditto        | Any Magistrate.                |

| 1                                                                        | 2                                                                                                                                                                                                                                                                                                                                                                   | 3                                                  | 4                                                                                                                                                                                                                                                                                                                                                                                    | 5            | 6                               |
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| <sup>1</sup> [CHAPTER XXA.—OF CRUELTY BY HUSBAND OR RELATIVES OF HUSBAND |                                                                                                                                                                                                                                                                                                                                                                     |                                                    |                                                                                                                                                                                                                                                                                                                                                                                      |              |                                 |
| 498A                                                                     | Punishment for subjecting a married woman to cruelty.                                                                                                                                                                                                                                                                                                               | Imprisonment for three years and fine.             | Cognizable if information relating to the commission of the offence is given to an officer in charge of a police station by the person aggrieved by the offence or by any person related to her by blood, marriage or adoption or if there is no such relative, by any public servant belonging to such class or category as may be notified by the State Government in this behalf. | Non-bailable | Magistrate of the first class.] |
| CHAPTER XXI.—DEFAMATION                                                  |                                                                                                                                                                                                                                                                                                                                                                     |                                                    |                                                                                                                                                                                                                                                                                                                                                                                      |              |                                 |
| 500                                                                      | Defamation against the President or the Vice-President or the Governor of a State or Administrator of a Union territory or a Minister in respect of his conduct in the discharge of his public functions when instituted upon a complaint made by the Public Prosecutor.<br>Defamation in any other case                                                            | Simple imprisonment for 2 years, or fine, or both. | Non-cognizable                                                                                                                                                                                                                                                                                                                                                                       | Bailable     | Court of Session.               |
|                                                                          |                                                                                                                                                                                                                                                                                                                                                                     | Ditto                                              | Ditto                                                                                                                                                                                                                                                                                                                                                                                | Ditto        | Magistrate of the first class.  |
| 501(a)                                                                   | Printing or engraving matter knowing it to be defamatory against the President or the Vice-President or the Governor of a State or Administrator of a Union territory or a Minister in respect of his conduct in the discharge of his public functions when instituted upon a complaint made by the Public Prosecutor.                                              | Ditto                                              | Ditto                                                                                                                                                                                                                                                                                                                                                                                | Ditto        | Court of Session.               |
| (b)                                                                      | Printing or engraving matter knowing it to be defamatory, in any other case.                                                                                                                                                                                                                                                                                        | Ditto                                              | Ditto                                                                                                                                                                                                                                                                                                                                                                                | Ditto        | Magistrate of the first class.  |
| 502(a)                                                                   | Sale of printed or engraved substance containing defamatory matter, knowing it to contain such matter against the President or the Vice-President or the Governor of a State or Administrator of a Union territory or a Minister in respect of his conduct in the discharge of his public functions when instituted upon a complaint made by the Public Prosecutor. | Ditto                                              | Ditto                                                                                                                                                                                                                                                                                                                                                                                | Ditto        | Court of Session.               |
| (b)                                                                      | Sale of printed or engraved substance containing defamatory matter, knowing it to contain such matter in any other case.                                                                                                                                                                                                                                            | Ditto                                              | Ditto                                                                                                                                                                                                                                                                                                                                                                                | Ditto        | Magistrate of the first class.  |

1. Ins. by Act 46 of 1983, s. 6 (w.e.f. 25-12-1983).

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CHAPTER XXII.—CRIMINAL INTIMIDATIONS, INSULT AND ANNOYANCE

|     |                                                                                                                  |                                                                              |                |              |                                |
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| 504 | Insult intended to provoke breach of the peace.                                                                  | Imprisonment for 2 years, or fine, or both.                                  | Non-cognizable | Bailable     | Any Magistrate.                |
| 505 | False statement, rumour, etc., circulated with intent to cause mutiny or offence against the public peace.       | Imprisonment for 3 years, or fine, or both.                                  | Ditto          | Non-bailable | Ditto.                         |
|     | False statement, rumour, etc., with intent to create enmity, hatred or ill-will between different classes.       | Ditto                                                                        | Cognizable     | Ditto        | Ditto.                         |
|     | False statement, rumour, etc., made in place of worship, etc., with intent to create enmity, hatred or ill-will. | Imprisonment for 5 years and fine.                                           | Ditto          | Ditto        | Ditto.                         |
| 506 | Criminal intimidation.                                                                                           | Imprisonment for 2 years, or fine, or both.                                  | Non-cognizable | Bailable     | Ditto.                         |
|     | If threat be to cause death or grievous hurt, etc.                                                               | Imprisonment for 7 years, or fine, or both.                                  | Ditto          | Ditto        | Magistrate of the first class. |
| 507 | Criminal intimidation by anonymous communication or having taken precaution to conceal whence the threat comes.  | Imprisonment for 2 years, in addition to the punishment under above section. | Ditto          | Ditto        | Ditto.                         |
| 508 | Act caused by inducing a person to believe that he will be rendered an object of Divine displeasure.             | Imprisonment for 1 year, or fine, or both.                                   | Ditto          | Ditto        | Any Magistrate.                |
| 509 | Uttering any word or making any gesture intended to insult the modesty of a woman, etc.                          | <sup>1</sup> [Simple imprisonment for 3 years and with fine.]                | Cognizable     | Ditto        | Ditto.                         |
| 510 | Appearing in a public place, etc., in a state of intoxication, and causing annoyance to any person.              | Simple imprisonment for 24 hours, or fine of 10 rupees, or both.             | Non-cognizable | Ditto        | Ditto.                         |

CHAPTER XXIII.—ATTEMPTS TO COMMIT OFFENCES

|     |                                                                                                                                                                |                                                                                                                           |                                                           |                                                                        |                                                      |
|-----|----------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------|------------------------------------------------------------------------|------------------------------------------------------|
| 511 | Attempting to commit offences punishable with imprisonment for life, or imprisonment, and in such attempt doing any act towards the commission of the offence. | Imprisonment for life, or imprisonment not exceeding half of the longest term, provided for the offence, or fine, or both | According as the offence is cognizable or non-cognizable. | According as the offence attempted by the offender is bailable or not. | The court by which the offence attempted is triable. |
|-----|----------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------|------------------------------------------------------------------------|------------------------------------------------------|

II.—CLASSIFICATION OF OFFENCES AGAINST OTHER LAWS

| Offence                                                                                | Cognizable or non-cognizable | Bailable or non-bailable | By what court triable          |
|----------------------------------------------------------------------------------------|------------------------------|--------------------------|--------------------------------|
| If punishable with death, imprisonment for life, or imprisonment for more than 7 years | Cognizable                   | Non-bailable             | Court of Session.              |
| If punishable with imprisonment for 3 years and upwards but not more than 7 years      | Ditto                        | Ditto                    | Magistrate of the first class. |
| If punishable with imprisonment for less than 3 years or with fine only.               | Non-cognizable               | Bailable                 | Any Magistrate.                |

1. Subs. by Act 13 of 2013, s. 24, for the word “Simple imprisonment for 1 year, or fine, or both,” occurring made in column 3, relating to s. 509 (w.e.f. 3-2-2013).

## STATE AMENDMENTS

### Chhattisgarh

In First Schedule to the Code, under the heading “1. —OFFENCES UNDER THE INDIAN PENAL CODE, 1860”

(a) In the entries relating to Section 211, the following entries shall be added, namely: —

| Section | Offence                                                                                                            | Punishment                                                                   | Cognizable or non-cognizable | Bailable or non-bailable | By what Court triable          |
|---------|--------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------|------------------------------|--------------------------|--------------------------------|
| (1)     | (2)                                                                                                                | (3)                                                                          | (4)                          | (5)                      | (6)                            |
| ...     | If offence charged be punishable under Ss. 354, 354A, 354B, 354C, 354D, 354E, 376B, 376C, 376F, 509, 509A or 509B. | Imprisonment not less than 3 years but which may extend to 5 years and fine. | Non-Cognizable               | Bailable                 | Magistrate of the first class. |

(b) In the entries relating to Section 354, the following entries shall be added, namely: —

| Section | Offence                                | Punishment                                                                   | Cognizable or non-cognizable | Bailable or non-bailable | By what Court triable          |
|---------|----------------------------------------|------------------------------------------------------------------------------|------------------------------|--------------------------|--------------------------------|
| (1)     | (2)                                    | (3)                                                                          | (4)                          | (5)                      | (6)                            |
| ...     | If committed by relative of the woman. | Imprisonment not less than 2 years but which may extend to 7 years and fine. | Cognizable                   | Non-Bailable             | Magistrate of the first class. |

(C) After the entries relating to Section 354D, the following shall be inserted, namely: —

| Section | Offence                                                                                                             | Punishment                                 | Cognizable or non-cognizable | Bailable or non-bailable | By what Court triable |
|---------|---------------------------------------------------------------------------------------------------------------------|--------------------------------------------|------------------------------|--------------------------|-----------------------|
| (1)     | (2)                                                                                                                 | (3)                                        | (4)                          | (5)                      | (6)                   |
| 354E    | Liability of person present who fails to prevent the commission of offence under Ss. 354, 354A, 354B, 354C or 354D. | Imprisonment upto 3 years or fine or both. | Cognizable                   | Bailable                 | Any Magistrate.       |

(d) After the entries relating of Section 376E, the following shall be inserted, namely: —

| Section | Offence                                   | Punishment          | Cognizable or non-cognizable | Bailable or non-bailable | By what Court triable |
|---------|-------------------------------------------|---------------------|------------------------------|--------------------------|-----------------------|
| (1)     | (2)                                       | (3)                 | (4)                          | (5)                      | (6)                   |
| 376F    | Liability of person in-charge of any work | Imprisonment upto 3 | Cognizable                   | Non-                     | Magistrate of         |

|                                                     |                 |          |              |
|-----------------------------------------------------|-----------------|----------|--------------|
| place and others to give information about offence. | years and fine. | Bailable | first class. |
|-----------------------------------------------------|-----------------|----------|--------------|

(e) After the entries relating to Section 509, the following shall be inserted, namely: —

| Section | Offence                                | Punishment                                                                               | Cognizable or non-cognizable | Bailable or non-bailable | By what Court triable       |
|---------|----------------------------------------|------------------------------------------------------------------------------------------|------------------------------|--------------------------|-----------------------------|
| (1)     | (2)                                    | (3)                                                                                      | (4)                          | (5)                      | (6)                         |
| 509A    | Sexual harassment by relative.         | Rigorous imprisonment not less than 1 year but which may extend upto 5 years and fine.   | Cognizable                   | Non-Bailable             | Magistrate of first class.  |
| 509B    | Sexual harassment by electronic modes. | Rigorous imprisonment not less than 6 months but which may extend upto 2 years and fine. | Cognizable                   | Non-Bailable             | Magistrate of first class,] |

[Vide Chhattisgarh Act 25 of 2015, s. 13]

## Gujarat

In the Code of Criminal Procedure, 1973, in the First Schedule, in the table, under the heading “Chapter XVII-Offences against Property”, after section 379, the following shall be inserted, namely: —

| Section | Offence                                                                                                                                | Punishment                                                                                                       | Cognizable or Non-cognizable | Bailable or Non-bailable | By what court triable |
|---------|----------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------|------------------------------|--------------------------|-----------------------|
| (1)     | (2)                                                                                                                                    | (3)                                                                                                              | (4)                          | (5)                      | (6)                   |
| “379A   | Attempt to commit snatching                                                                                                            | Rigorous imprisonment of not less than five years but which may extend to ten years, and fine of 25,000 rupees.  | Cognizable                   | Non-bailable             | Court of Session      |
|         | Committing snatching                                                                                                                   | Rigorous imprisonment of not less than seven years but which may extend to ten years, and fine of 25,000 rupees. | Ditto                        | Ditto                    | Ditto.                |
|         | Causing hurt or wrongful restraint or fear of hurt, in order to effect escape after attempting to commit or after committing snatching | Rigorous imprisonment which may extend to three years, in addition to punishment under other sub-sections.       | Ditto                        | Ditto                    | Ditto.                |

|      |                                                                                                                                                                             |                                                                                                                  |       |       |          |
|------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------|-------|-------|----------|
| 379B | Snatching, after preparation having been made for causing death, or hurt, or restraint, in order to the committing of such snatching, or to retaining property taken by it. | Rigorous imprisonment of not less than seven years but which may extend to ten years, and fine of 25,000 rupees. | Ditto | Ditto | Ditto.”. |
|------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------|-------|-------|----------|

[Vide Gujarat Act 6 of 2019, s. 3.]

### Madhya Pradesh

**Amendment of First Schedule.**- In the First Schedule to the principal Act, under the heading “I-OFFENCES UNDER THE INDIAN PENAL CODE”, after the entries relating to section 354, the following entries shall be inserted, namely:-

| Section | Offence                                                               | Punishment                                                                         | Cognizable or Non-cognizable | Bailable or Non-bailable | By what court triable |
|---------|-----------------------------------------------------------------------|------------------------------------------------------------------------------------|------------------------------|--------------------------|-----------------------|
| (1)     | (2)                                                                   | (3)                                                                                | (4)                          | (5)                      | (6)                   |
| “354-A  | Assault or use of Criminal force to woman with intent to disrobe her. | Imprisonment of not less than one year but which may extend to ten years and fine. | Cognizable                   | Non-bailable             | Court of Session”     |

[Vide Madhya Pradesh Act 15 of 2004, s. 5.]

### Madhya Pradesh

**Amendment of the First Schedule.**—In the First Schedule to the principal Act, under the heading “I-Offences under the Indian Penal Code”, in column 6 against section 317, 318, 326, 363, 363A, 365, 377, 392, 393, 394, 409, 435, 466, 467, 468, 471, 472, 473, 474, 475, 476, 477 and 477A, for the words, “Magistrate of the first class”, wherever they occur, the words “Court of Session” shall be substituted.

[Vide Madhya Pradesh Act 2 of 2008, s. 4.]

### Maharashtra

In the First Schedule to the Code of Criminal Procedure, under heading “I,- OFFENCES UNDER THE INDIAN PENAL CODE”,-

(i) for the entry relating to section 332, the following entry shall be substituted, namely:—

| Section | Offence | Punishment | Cognizable or Non-cognizable | Bailable or Non-bailable | By what court triable |
|---------|---------|------------|------------------------------|--------------------------|-----------------------|
|---------|---------|------------|------------------------------|--------------------------|-----------------------|

| (1)  | (2)                                                             | (3)                                        | (4)        | (5)           | (6)                 |
|------|-----------------------------------------------------------------|--------------------------------------------|------------|---------------|---------------------|
| “332 | Voluntarily causing hurt to deter public servant from his duty. | Imprisonment for 5 years or fine, or both. | Cognizable | Non- bailable | Court of Session.”; |

(ii) for the entry relating to section 353, the following entry shall be substituted, namely:—

| Section | Offence                                                                                | Punishment                                     | Cognizable or Non-cognizable | Bailable or Non-bailable | By what court triable |
|---------|----------------------------------------------------------------------------------------|------------------------------------------------|------------------------------|--------------------------|-----------------------|
| (1)     | (2)                                                                                    | (3)                                            | (4)                          | (5)                      | (6)                   |
| “353    | Assault or use of criminal force to deter a public servant from discharge of his duty. | Imprisonment for five years, or fine, or both. | Cognizable                   | Non-bailable             | Court of Session.”.   |

[Vide Maharashtra Act 40 of 2018, s. 5.]

## Haryana

| 1.     | This Act may be called the Code of Criminal Procedure (Haryana Amendment) Act, 2014.                                                                                                          |                                                                                                                                      |            |              | Short title                                          |
|--------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------|------------|--------------|------------------------------------------------------|
| 2.     | In the Code of Criminal Procedure, 1973 in its application to the State of Haryana, in the First Schedule, in the table, after section 379, the following entries shall be inserted, namely:— |                                                                                                                                      |            |              | Amendment of First Schedule to Central Act 2 of 1974 |
| 1      | 2                                                                                                                                                                                             | 3                                                                                                                                    | 4          | 5            | 6                                                    |
| “379-A | Snatching                                                                                                                                                                                     | Rigorous imprisonment for a term which shall not be less than five years but which may extend to ten years, and fine of Rs. 25,000/- | Cognizable | Non-bailable | Court of Session                                     |
| 379-B  | Snatching with hurt or wrongful restraint or fear of hurt.                                                                                                                                    | Rigorous imprisonment for a term which shall not be less than ten years and which may extend to fourteen years, and                  | Ditto      | Ditto        | Ditto”.                                              |



fine of Rs.  
25,000/-

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[Vide Notification No. GSR929(E) dated 16<sup>th</sup> December, 2019.]

### Himachal Pradesh

**Amendment of Central Act No. 2 of 1974.**—In the First Schedule to the Code of Criminal Procedure, 1973, under the heading “1. OFFENCES UNDER THE INDIAN PENAL CODE” after the entries relating to section 304-A, the following entries shall be inserted, namely:—

| 1       | 2                                                                                            | 3                                                               | 4     | 5            | 6                 |
|---------|----------------------------------------------------------------------------------------------|-----------------------------------------------------------------|-------|--------------|-------------------|
| “304-AA | Causing death or injury by driving a public service vehicle while in a state of intoxication | Imprisonment for life, or imprisonment for seven years and fine | Ditto | Non-bailable | Court of Session” |

[Vide Himachal Pradesh 19 of 1997, s. 3.]

### Himachal Pradesh

**Amendment of Central Act No. 2 of 1974.** — In the First Schedule to the Code of Criminal Procedure, 1973, under the heading “I, OFFENCES UNDER THE INDIAN PENAL CODE”, after the entries relating to section 289, the following entries shall be inserted, namely:—

| 1      | 2                                                                                                                                                                                                                                                                                                                                                                                              | 3                                                        | 4     | 5     | 6      |
|--------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------|-------|-------|--------|
| “289-A | Whoever throws eatables in public place, other than those notified by the State Government in the Official Gazette, and thereby entice monkeys to assemble at such place for taking eatables which result in causing danger to human life or to be likely to cause injury or annoyance to the public or to the people in general or to cause hindrance in smooth running of vehicular traffic. | Imprisonment for one month or fine of Rs. 1000/- or both | Ditto | Ditto | Ditto. |

[Vide Himachal Pradesh Act 15 of 2006, s. 3.]

## Himachal Pradesh

**Amendment of Central Act No. 2 of 1947.**—In the First Schedule to the Code of Criminal Procedure, 1973, under the heading “OFFENCES UNDER THE INDIAN PENAL CODE”, in its application to the State of Himachal Pradesh, against the entries relating to section 304-AA, under column 2, for the words “a public service vehicle”, the words “any vehicle” shall be substituted.

[Vide Himachal Pradesh Act 7 of 2012, s. 3.]

## STATE AMENDMENTS

### Jammu and Kashmir and Ladakh (UTs).—

| 1    | 2          | 3                                                                                       | 4          | 5            |                               |
|------|------------|-----------------------------------------------------------------------------------------|------------|--------------|-------------------------------|
| 354E | Sextortion | Imprisonment of not less than 3 years but which may extend to five years and with fine. | Cognizable | Non-bailable | Magistrate of the First Class |

[vide the Jammu and Kashmir Reorganization (Adaptation of Central Laws) Order, 2020, vide notification No. S.O. 1123(E) dated (18-3-2020).]

## Orissa

**Amendment of First Schedule.**—In the First Schedule to the said Code, in the entry under column 5 relating to section 354 of the Indian Penal Code, 1860 (45 of 1860) for the word “Bailable” the word “non-bailable” shall be substituted.

[Vide Orissa Act 6 of 1995, s. 3]

**Amendment of First Schedule.**— In the first Schedule to the principal Act, for the existing entries relating to sections 272, 273, 274, 275 and 276, the following entries shall respectively be substituted , namely:—

| Section | Offence                                                                                                                                         | Punishment                      | Cognizable or non-cognizable | Bailable non-bailable or | By what Court triable |
|---------|-------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------|------------------------------|--------------------------|-----------------------|
| (1)     | (2)                                                                                                                                             | (3)                             | (4)                          | (5)                      | (6)                   |
| 272.    | Adulterating food or drink intended For sale, or as to make the same noxious.                                                                   | Imprisonment for life and fine. | Cognizable                   | Non-bailable             | Court of Session.     |
| 273.    | Selling any food or drink as food and drink, knowing the same to be noxious.                                                                    | Ditto                           | Ditto                        | Ditto                    | Ditto                 |
| 274.    | Adulterating any drug or medical Preparation intended for sale so as to Lessen its efficacy, or to change its Operation, or to make it noxious. | Ditto                           | Ditto                        | Ditto                    | Ditto                 |

|      |                                                                                                                            |                                |            |              |                    |
|------|----------------------------------------------------------------------------------------------------------------------------|--------------------------------|------------|--------------|--------------------|
| 275. | Offering for sale or issuing from a dispensary and drug or medical preparation known to have been adulterated.             | Imprisonment for life and fine | Cognizable | Non-bailable | Court for session. |
| 276. | knowingly selling or issuing from A dispensary and drug or medical Preparation as a different drug or medical preparation. | Ditto                          | Ditto      | Ditto        | Ditto              |

[Vide Orissa Act 6 of 2004, s. 3]

THE SECOND SCHEDULE

(See section 476)

FORM No. 1

SUMMONS TO AN ACCUSED PERSON

(See section 61)

To (name of accused) of (address)

WHEREAS your attendance is necessary to answer to a charge of (state shortly the offence charged), you are hereby required to appear in person (or by pleader, as the case may be) before the (Magistrate) of , on the day . Herein fail not.

Dated, this day of , 19 .

(Seal of the Court)

(Signature)

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FORM No. 2

WARRANT OF ARREST

(See section 70)

To (name and designation of the person or persons who is or are to execute the warrant).

WHEREAS (name of accused) of (address) stands charged with the offence of (state the offence), you are hereby directed to arrest the said , and to produce him before me. Herein fail not.

Dated, this day of , 19 .

(Seal of the Court)

(Signature)

(See section 71)

*This warrant may be endorsed as follows:—*

If the said shall give bail himself in the sum of rupees with one surety in the sum of rupees (or two sureties each in the sum of rupees ) to attend before me on the day of and to continue so to attend until otherwise directed by me, he may be released.

Dated, this day of , 19 .

(Seal of the Court)

(Signature)

FORM No. 3

BOND AND BAIL-BOND AFTER ARREST UNDER A WARRANT

(See section 81)

I, \_\_\_\_\_ (name), of \_\_\_\_\_, being brought before the District Magistrate of \_\_\_\_\_ (or as the case may be) under a warrant issued to compel my appearance to answer to the charge of \_\_\_\_\_, do hereby bind myself to attend in the Court of \_\_\_\_\_ on the \_\_\_\_\_ day of \_\_\_\_\_ next, to answer to the said charge, and to continue so to attend until otherwise directed by the Court; and, in case of my making default herein, I bind myself to forfeit, to Government, the sum of rupees \_\_\_\_\_

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Signature)

I do hereby declare myself surety for the above-named \_\_\_\_\_ of \_\_\_\_\_ that he shall attend before \_\_\_\_\_ in the Court of on the \_\_\_\_\_ day of \_\_\_\_\_ next, to answer to the charge on which he has been arrested, and shall continue so to attend until otherwise directed by the Court; and, in case of his making default therein, I bind myself to forfeit, to Government, the sum of rupees \_\_\_\_\_

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Signature)

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FORM No. 4

PROCLAMATION REQUIRING THE APPEARANCE OF A PERSON ACCUSED

(See section 82)

WHEREAS a complaint has been made before me that \_\_\_\_\_ (name, description and address) has committed (or is suspected to have committed) the offence of \_\_\_\_\_, punishable under section \_\_\_\_\_ of the Indian Penal Code, and it has been returned to a warrant of arrest thereupon issued that the said \_\_\_\_\_ (name) cannot be found, and whereas it has been shown to my satisfaction that the said \_\_\_\_\_ (name) has absconded (or is concealing himself to avoid the service of the said warranty);

Proclamation is hereby made that the said \_\_\_\_\_ of \_\_\_\_\_ is required to appear at \_\_\_\_\_ (place) before this Court (or before me) to answer the said complaint on the \_\_\_\_\_ day of \_\_\_\_\_

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 5

PROCLAMATION REQUIRING THE ATTENDANCE OF A WITNESS

(See sections 82, 87 and 90)

WHEREAS complaint has been made before me that \_\_\_\_\_ (*name, description and address*) has committed (*or is suspected to have committed*) the offence of \_\_\_\_\_ (*mention the offence concisely*) and a warrant has been issued to compel the attendance of \_\_\_\_\_ (*name, description and address of the witness*) before this Court to be examined touching the matter of the said complaint; and whereas it has been returned to the said warrant that the said \_\_\_\_\_ (*name of witness*) cannot be served, and it has been shown to my satisfaction that he has absconded (*or is concealing himself to avoid the service of the said warrant*);

Proclamation is hereby made that the said \_\_\_\_\_ (*name*) is required to appear at \_\_\_\_\_ (*place*) before the Court \_\_\_\_\_ on the \_\_\_\_\_ day of \_\_\_\_\_ next at \_\_\_\_\_ o'clock to be examined touching \_\_\_\_\_ the offence complained of.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 6

ORDER OF ATTACHMENT TO COMPEL THE ATTENDANCE OF A WITNESS

(See section 83)

To the officer in charge of the police station at \_\_\_\_\_

WHEREAS a warrant has been duly issued to compel the attendance of \_\_\_\_\_ (*name, description and address*) to testify concerning a complaint pending before this Court, and it has been returned to the said warrant that it cannot be served; and whereas it has been shown to my satisfaction that he has absconded (*or is concealing himself to avoid the service of the said warrant*); and thereupon a Proclamation has been or is being duly issued and published requiring the said \_\_\_\_\_ to appear and give evidence at the time and place mentioned therein;

This is to authorise and require you to attach by seizure the movable property belonging to the said \_\_\_\_\_ to the value of rupees \_\_\_\_\_ which you may find within the District \_\_\_\_\_ of \_\_\_\_\_ and to hold the said property under attachment pending the further order of this Court, and to return this warrant with an endorsement certifying the manner of its execution.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 7

ORDER OF ATTACHMENT TO COMPEL THE APPEARANCE OF A PERSON ACCUSED

(See section 83)

To

(name and designation of the person or persons who is or are to execute the warrant).

WHEREAS complaint has been made before me that (name, description and address) has committed (or is suspected to have committed) the offence of punishable under section of the Indian Penal Code, and it has been returned to a warrant of arrest thereupon issued that the said (name) cannot be found; and whereas it has been shown to my satisfaction that the said (name) has absconded (or is concealing himself to avoid the service of the said warrant) and thereupon a Proclamation has been or is being duly issued and published requiring the said to appear to answer the said charge within days; and whereas the said is possessed of the following property, other than land paying revenue to Government, in the village (or town), of , in the District of , viz., , and an order has been made for the attachment thereof;

You are hereby required to attach the said property in the manner specified in clause (a), or clause (c), or both\*, of sub-section (2) of section 83, and to hold the same under attachment pending further order of this Court, and to return this warrant with an endorsement certifying the manner of its execution.

Dated, this day of ,19 .

(Seal of the Court)

(Signature)

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\* Strike out the one which is not applicable, depending on the nature of the property to be attached.

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FORM No. 8

ORDER AUTHORISING AN ATTACHMENT BY THE DISTRICT MAGISTRATE OR COLLECTOR

(See section 83)

To the District Magistrate/Collector of the District of

WHEREAS complaint has been made before me that (name, description and address) has committed (or is suspected to have committed) the offence of , punishable under section of the Indian Penal Code, and it has been returned to a warrant of arrest thereupon issued that the said (name) cannot be found; and whereas it has been shown to my satisfaction that the said (name) has absconded (or is concealing himself to avoid the service of the said warrant) and thereupon a Proclamation has been or is being duly issued and published requiring the said (name) to appear to answer the said charge within days; and whereas the said is possessed of certain land paying revenue to Government in the village (or town) of , in the District of ;

You are hereby authorised and requested to cause the said land to be attached, in the manner specified in clause (a), or clause (c), or both\*, of sub-section (4) of section 83, and to be held under attachment pending the further order of this Court, and to certify without delay what you may have done in pursuance of this order.

Dated, this day of ,19 .

(Seal of the Court)

(Signature)

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\* Strike out the one which is not desired.

FORM No. 9

WARRANT IN THE FIRST INSTANCE TO BRING UP A WITNESS

(See section 87)

To

(name and designation of the police officer or other person or persons who is or are to execute the warrant).

WHEREAS complaint has been made before me that (name and description of accused) of (address) has (or is suspected to have) committed the offence of (mention the offence concisely), and it appears likely that (name and description of witness) can give evidence concerning the said complaint, and whereas I have good and sufficient reason to believe that he will not attend as a witness on the hearing of the said complaint unless compelled to do so;

This is to authorise and require you to arrest the said (name of witness), and on the day of to bring him before this Court, to be examined touching the offence complained of.

Dated, this day of , 19 .

(Seal of the Court)

(Signature)

FORM No. 10

WARRANT TO SEARCH AFTER INFORMATION OF A PARTICULAR OFFENCE

(See section 93)

To

(name and designation of the police officer or other person or persons who is or are to execute the warrant).

WHEREAS information has been laid (or complaint has been made) before me of the commission (or suspected commission) of the offence of (mention the offence concisely), and it has been made to appear to me that the production of (specify the thing clearly) is essential to the inquiry now being made (or about to be made) into the said offence (or suspected offence);

This is to authorise and require you to search for the said (the thing specified) in the (describe the house or place or part thereof to which the search is to be confined), and, if found, to produce the same forthwith before this Court, returning this warrant, with an endorsement certifying what you have done under it, immediately upon its execution.

Dated, this day of , 19 .

(Seal of the Court)

(Signature)



FORM No. 11

WARRANT TO SEARCH SUSPECTED PLACE OF DEPOSIT

(See section 94)

To

*(name and designation of the police officer above the rank of a constable).*

WHEREAS information has been laid before me, and on due inquiry thereupon had, I have been led to believe that the *(describe the house or other place)* is used as a place for the deposit (or sale) of stolen property *(or if for either of the other purposes expressed in the section, state the purpose in the words of the section);*

This is to authorise and require you to enter the said house *(or other place)* with such assistance as shall be required, and to use, if necessary, reasonable force for that purpose, and to search every part of the said house *(or other place, or if the search is to be confined to a part, specify the part clearly)*, and to seize and take possession of any property *(or documents, or stamps, or seals, or coins, or obscene objects, as the case may be)* *(add, when the case requires it)* and also of any instruments and materials which you may reasonably believe to be kept for the manufacture of forged documents, *or counterfeit stamps, or false seals, or counterfeit coins or counterfeit currency notes (as the case may be)*, and forthwith to bring before this Court such of the said things as may be taken possession of, returning this warrant, with an endorsement certifying what you have done under it, immediately upon its execution.

Dated, this                      day of                      ,19   .

*(Seal of the Court)*

*(Signature)*

FORM No. 12

BOND TO KEEP THE PEACE

(See sections 106 and 107)

WHEREAS I,                      *(name)*, inhabitant of                      *(place)*, have been called upon to enter into a bond to keep the peace for the term of                      or until the completion of the inquiry in the matter of                      now pending in the Court of                      , I hereby bind myself not to commit a breach of the peace, or do any act that may probably occasion a breach of the peace, during the said term or until the completion of the said inquiry and, in case of my making default therein, I hereby bind myself to forfeit, to Government, the sum of rupees

Dated, this                      day of                      ,19   .

*(Signature)*

FORM No. 13

BOND FOR GOOD BEHAVIOUR

(See sections 108, 109 and 110)

WHEREAS I, \_\_\_\_\_ (name), inhabitant of \_\_\_\_\_ (place), have been called upon to enter into a bond to be of good behaviour to Government and all the citizens of India for the term of (state the period) or until the completion of the inquiry in the matter of \_\_\_\_\_ now pending in the Court of \_\_\_\_\_, I hereby bind myself to be of good behaviour to Government and all the citizens of India during the said term or until the completion of the said inquiry; and, in case of my making default therein, I hereby bind myself to forfeit to Government the sum of rupees \_\_\_\_\_

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_.

(Signature)

(Where a bond with sureties is to be executed, add)

We do hereby declare ourselves sureties for the above-named \_\_\_\_\_ that he will be of good behaviour to Government and all the citizens of India during the said term or until the completion of the said inquiry; and, in case of his making default therein, we bind ourselves, jointly and severally, to forfeit to Government the sum of rupees \_\_\_\_\_

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_.

(Signature)

FORM No. 14

SUMMONS ON INFORMATION OF A PROBABLE BREACH OF THE PEACE

(See section 113)

To \_\_\_\_\_ of \_\_\_\_\_

WHEREAS it has been made to appear to me by credible information that \_\_\_\_\_ (state the substance of the information), and that you are likely to commit a breach of the peace (or by which act a breach of the peace will probably be occasioned), you are hereby required to attend in person (or by a duly authorised agent) at the office of the Magistrate of \_\_\_\_\_ on the \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_, at ten o'clock in the forenoon, to show cause why you should not be required to enter into a bond for rupees \_\_\_\_\_ [when sureties are required, add, and also to give security by the bond of one (or two, as the case may be) surety (or sureties) in the sum of rupees \_\_\_\_\_ (each if more than one)], that you will keep the peace for the term of \_\_\_\_\_

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 15

WARRANT OF COMMITMENT ON FAILURE TO FIND SECURITY TO KEEP THE PEACE

(See section 122)

To the Officer in charge of the Jail at

WHEREAS (name and address) appeared before me in person (or by his authorised agent) on the day of in obedience to a summons calling upon him to show cause why he should not enter into a bond for rupees with one surety (or a bond with two sureties each in rupees), that he, the said (name) would keep the peace for the period of months; and whereas an order was then made requiring the said (name) to enter into and find such security (state the security ordered when it differs from that mentioned in the summons), and he has failed to comply with the said order;

This is to authorise and require you to receive the said (name) into your custody, together with this warrant, and him safely to keep in the said Jail for the said period of (term of imprisonment) unless he shall in the meantime be lawfully ordered to be released, and to return this warrant with an endorsement certifying the manner of its execution.

Dated, this day of ,19 .

(Seal of the Court)

(Signature)

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FORM No. 16

WARRANT OF COMMITMENT ON FAILURE TO FIND SECURITY FOR GOOD BEHAVIOUR

(See section 122)

To the Officer in charge of the Jail at

WHEREAS it has been made to appear to me that (name and description) has been concealing his presence within the district of and that there is reason to believe that he is doing so with a view to committing a cognizable offence;

or

WHEREAS evidence of the general character of (name and description) has been adduced before me and recorded, from which it appears that he is an habitual robber (or house-breaker, etc., as the case may be);

AND WHEREAS an order has been recorded stating the same and requiring the said (name) to furnish security for his good behaviour for the term of (state the period) by entering into a bond with one surety (or two or more sureties, as the case may be), himself for rupees, and the said surety (or each of the said sureties) rupees, and the said (name) has failed to comply with the said order and for such default has been adjudged imprisonment for (state the term) unless the said security be sooner furnished;

This is to authorise and require you receive the said (name) into your custody, together with this warrant and him safely to keep in the Jail, or if he is already in prison, be detained therein, for the said period of (term of imprisonment) unless he shall in the meantime be lawfully ordered to be released, and to return this warrant with an endorsement certifying the manner of its execution.

Dated, this day of ,19 .

(Seal of the Court)

(Signature)

FORM No. 17

WARRANT TO DISCHARGE A PERSON IMPRISONED ON FAILURE TO GIVE SECURITY

(See sections 122 and 123)

To the Officer in charge of the Jail at \_\_\_\_\_ (or other officer in whose custody the person is).

WHEREAS \_\_\_\_\_ (name and description of prisoner) was committed to your custody under warrant of the Court, dated the \_\_\_\_\_ day of \_\_\_\_\_ 19\_\_\_\_; and has since duly given security under section \_\_\_\_\_ of the Code of Criminal Procedure, 1973.

or

WHEREAS \_\_\_\_\_ (name and description of prisoner) was committed to your custody under warrant of the Court, dated the \_\_\_\_\_ day of \_\_\_\_\_ 19\_\_\_\_; and there have appeared to me sufficient grounds for the opinion that he can be released without hazard to the community;

This is to authorise and require you forthwith to discharge the said \_\_\_\_\_ (name) from your custody unless he is liable to be detained for some other cause.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_.

(Seal of the Court)

(Signature)

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FORM No. 18

WARRANT OF IMPRISONMENT ON FAILURE TO PAY MAINTENANCE

(See section 125)

To the Officer in charge of the Jail at \_\_\_\_\_

WHEREAS \_\_\_\_\_ (name, description and address) has been proved before me to be possessed of sufficient means to maintain his wife \_\_\_\_\_ (name) [or his child \_\_\_\_\_ (name) or his father or mother \_\_\_\_\_ (name), who is by reason of (state the reason) unable to maintain herself (or himself)] and to have neglected (or refused) to do so, and an order has been duly made requiring the said \_\_\_\_\_ (name) to allow to his said \_\_\_\_\_ wife (or child or father or mother) for maintenance the monthly sum of rupees \_\_\_\_\_; and whereas it has been further proved that the said \_\_\_\_\_ (name) in wilful disregard of the said order has failed to pay rupees \_\_\_\_\_, being the amount of the allowance for the month (or months) of \_\_\_\_\_;

And thereupon an order was made adjudging him to undergo imprisonment in the said Jail for the period of \_\_\_\_\_;

This is to authorise and require you receive the said \_\_\_\_\_ (name) into your custody in the said Jail, together with this warrant, and there carry the said order into execution according to law, returning this warrant with an endorsement certifying the manner of its execution.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 19

WARRANT TO ENFORCE THE PAYMENT OF MAINTENANCE BY ATTACHMENT AND SALE

(See section 125)

To

(name and designation of the police officer or other person to execute the warrant).

WHEREAS an order has been duly made requiring (name) to allow to his said wife (or child or father or mother) for maintenance the monthly sum of rupees , and whereas the said (name) in wilful disregard of the said order has failed to pay rupees , being the amount of the allowance for the month (or months) of

This is to authorise and require you to attach any movable property belonging to the said (name) which may be found within the district of , and if within (state the number of days or hours allowed) next after such attachment the said sum shall not be paid (or forthwith), to sell the movable property attached, or so much thereof as shall be sufficient to satisfy the said sum, returning this warrant, with an endorsement certifying what you have done under it, immediately upon its execution.

Dated, this day of ,19 .

(Seal of the Court)

(Signature)

FORM No. 20

ORDER FOR THE REMOVAL OF NUISANCES

(See section 133)

To (name, description and address).

WHEREAS it has been made to appear to me that you have caused an obstruction (or nuisance) to persons using the public roadway (or other public place) which, etc., (describe the road or public place) by, etc., (state what it is that causes the obstruction or nuisance), and that such obstruction (or nuisance) still exists;

or

WHEREAS it has been made to appear to me that you are carrying on, as owner, or manager, the trade or occupation of (state the particular trade or occupation and the place where it is carried on), and that the same is injurious to the public health (or comfort) by reason (state briefly in what manner the injurious effects are caused), and should be suppressed or removed to different place;

or

WHEREAS it has been made to appear to me that you are the owner (or are in possession of or have the control over) a certain tank (or well or excavation) adjacent to the public way (describe the thoroughfare), and that the safety of the public is endangered by reason of the said tank (or well or excavation) being without a fence or insecurely fenced);

or

WHEREAS, etc., etc., (as the case may be);

I do hereby direct and require you within \_\_\_\_\_ (state the time allowed) (state what is required to be done to abate the nuisance) or to appear at \_\_\_\_\_ in the \_\_\_\_\_ Court of \_\_\_\_\_ on the \_\_\_\_\_ day of \_\_\_\_\_ next, and to show cause why this order should not be enforced;

or

I do hereby direct and require you within \_\_\_\_\_ (state the time allowed) to cease carrying on the said trade or occupation at the said place, and not again to carry on the same, or to remove the said trade from the place where it is now carried on, or to appear, etc.;

or

I do hereby direct and require you within \_\_\_\_\_ (state the time allowed) to put up a sufficient fence (state the kind of fence and the part to be fenced); or to appear, etc.;

or

I do hereby direct and require you, etc., etc. (as the case may be).

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Seal of the Court)

(Signature)

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FORM No. 21

MAGISTRATE'S NOTICE AND PEREMPTORY ORDER

(See section 141)

To \_\_\_\_\_ (name, description and address).

I HEREBY give you notice that it has been found that the order issued on the \_\_\_\_\_ day of \_\_\_\_\_ requiring you (state substantially the requisition in the order) is reasonable and proper. Such order has been made absolute, and I hereby direct and require you to obey the said order within (state the time allowed), on peril of the penalty provided by the Indian Penal Code for disobedience thereto.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Seal of the Court)

(Signature)

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FORM No. 22

INJUNCTION TO PROVIDE AGAINST IMMINENT DANGER PENDING INQUIRY

(See section 142)

To \_\_\_\_\_ (name, description and address).

WHEREAS the inquiry into the conditional order issued by me on the \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_, is pending, and it has been made to appear to me that the nuisance mentioned in the said order is attended with such imminent danger or injury of a serious kind to the public as to render necessary immediate measures to prevent such danger or injury, I do hereby, under the provisions of section 142 of the Code of Criminal Procedure, 1973, direct and enjoin you forthwith to (state plainly what is required to be done as a temporary safeguard), pending the result of the inquiry.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 23

MAGISTRATE'S ORDER PROHIBITING THE REPETITION, ETC., OF A NUISANCE

(See section 143)

To (name, description and address).

WHEREAS it has been made to appear to me that, etc. (*state the proper recital, guided by Form No. 20 or Form No. 24, as the case may be*);

I do hereby strictly order and enjoin you not to repeat or continue, the said nuisance.

Dated, this                      day of                      , 19   .

(Seal of the Court)

(Signature)

FORM No. 24

MAGISTRATE'S ORDER TO PREVENT OBSTRUCTION, RIOT, ETC.

(See section 144)

To (name, description and address).

WHEREAS it has been made to appear to me that you are in possession (*or have the management*) of (*describe clearly the property*), and that, in digging a drain on the said land, you are about to throw or place a portion of the earth and stones dug-up upon the adjoining public road, so as to occasion risk of obstruction to persons using the road;

*or*

WHEREAS it has been made to appear to me that you and a number of other persons (*mention the class of persons*) are about to meet and proceed in a procession along the public street, etc., (*as the case may be*) and that such procession is likely to lead to a riot or an affray;

*or*

WHEREAS, etc., etc., (*as the case may be*);

I do hereby order you not to place or permit to be placed any of the earth or stones dug from land on any part of the said road;

*or*

I do hereby prohibit the procession passing along the said street, and strictly warn and enjoin you not to take any part in such procession (*or as the case recited may require*).

Dated, this                      day of                      , 19   .

(Seal of the Court)

(Signature)

FORM No. 25

MAGISTRATE'S ORDER DECLARING PARTY ENTITLED TO RETAIN POSSESSION OF LAND, ETC., IN DISPUTE

(See section 145)

It appears to me, on the grounds duly recorded, that a dispute, likely to induce a breach of the peace, existed between \_\_\_\_\_ (*describe the parties by name and residence or residence only if the dispute be between bodies of villagers*) concerning certain \_\_\_\_\_ (*state concisely the subject of dispute*), situate within my local jurisdiction, all the said parties were called upon to give in a written statement of their respective claims as to the fact of actual possession of the said \_\_\_\_\_ (*the subject of dispute*), and being satisfied by due inquiry had thereupon, without reference to the merits of the claim of either of the said parties to the legal right of possession, that the claim of actual possession by the said \_\_\_\_\_ (*name or names or description*) is true; I do decide and declare that he is (*or they are*) in possession of the said \_\_\_\_\_ (*the subject of dispute*) and entitled to retain such possession until ousted by due course of law, and do strictly forbid any disturbance of his (*or their*) possession in the meantime.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 26

WARRANT OF ATTACHMENT IN THE CASE OF A DISPUTE AS TO THE POSSESSION OF LAND, ETC.

(See section 146)

To the officer in charge of the police station at \_\_\_\_\_

(or, To the Collector of \_\_\_\_\_).

WHEREAS it has been made to appear to me that a dispute likely to induce a breach of the peace, existed between \_\_\_\_\_ (*describe the parties concerned by name and residence, or residence only if the dispute be between bodies of villagers*) concerning certain \_\_\_\_\_ (*state concisely the subject of dispute*) situate within the limits of my jurisdiction, and the said parties were thereupon duly called upon to state in writing their respective claims as to the fact of actual possession of the said \_\_\_\_\_ (*the subject of dispute*), and whereas, upon due inquiry into the said claims, I have decided that neither of the said parties was in possession of the said \_\_\_\_\_ (*the subject of dispute*) (*or I am unable to satisfy myself as to which of the said parties was in possession as aforesaid*);

This is to authorise and require you to attach the said \_\_\_\_\_ (*the subject of dispute*) by taking and keeping possession thereof, and to hold the same under attachment until the decree or order of a competent Court determining the rights of the parties, or the claim to possession, shall have been obtained, and to return this warrant with an endorsement certifying the manner of its execution.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Seal of the Court)

(Signature)



FORM No. 27

MAGISTRATE'S ORDER PROHIBITING THE DOING OF ANYTHING ON LAND OR WATER

(See section 147)

A dispute having arisen concerning the right of use of \_\_\_\_\_ (*state concisely the subject of dispute*) situate within my local jurisdiction, the possession of which land (*or water*) is claimed exclusively by \_\_\_\_\_ (*describe the person or persons*), and it appears to me, on due inquiry into the same, that the said land (*or water*) has been open to the enjoyment of such use by the public (*or if by an individual or a class of persons, describe him or them*) and (*if the use can be enjoyed throughout the year*) that the said use has been enjoyed within three months of the institution of the said inquiry (*or if the use is enjoyable only at a particular season, say, "during the last of the seasons at which the same is capable of being enjoyed"*);

I do order that the said \_\_\_\_\_ (*the claimant or claimants of possession*) or any one in their interest, shall not take (*or retain*) possession of the said land (*or water*) to the exclusion of the enjoyment of the right of use aforesaid, until he (*or they*) shall obtain the decree or order of a competent Court adjudging him (*or them*) to be entitled to exclusive possession.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 28

BOND AND BAIL-BOND ON A PRELIMINARY INQUIRY BEFORE A POLICE OFFICER

(See section 169)

I, (*name*), of \_\_\_\_\_, being charged with the offence of \_\_\_\_\_, and after inquiry required to appear before the Magistrate of \_\_\_\_\_

*or*

and after inquiry called upon to enter into my own recognizance to appear when required, do hereby bind myself to appear at \_\_\_\_\_, in the Court of \_\_\_\_\_, on the \_\_\_\_\_ day of \_\_\_\_\_ next (*or on such day as I may hereafter be required to attend*) to answer further to the said charge, and in case of my making default herein. I bind myself to forfeit to Government, the sum of rupees \_\_\_\_\_

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Signature)

I hereby declare myself (*or we jointly and severally declare ourselves and each of us*) surety (*or sureties*) for the above said (*name*) that he shall attend at \_\_\_\_\_ in the Court of \_\_\_\_\_, on the \_\_\_\_\_ day of \_\_\_\_\_ next (*or on such day as he may hereafter be required to attend*), further to answer to the charge pending against him, and, in case of his making default therein, I hereby bind myself (*or we hereby bind ourselves*) to forfeit to Government the sum of rupees \_\_\_\_\_.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Signature)

FORM No. 29  
BOND TO PROSECUTE OR GIVE EVIDENCE

(See section 170)

I, \_\_\_\_\_ (*name*) of \_\_\_\_\_ (*place*), do hereby bind myself to attend  
at \_\_\_\_\_ in the Court of \_\_\_\_\_ at \_\_\_\_\_ o'clock on the \_\_\_\_\_ day  
of \_\_\_\_\_ next and then and there to prosecute (*or to prosecute and give evidence*) (*or to give*  
*evidence*) in the matter of a charge of \_\_\_\_\_ against one A.B., and, in case of making default  
herein, I bind myself to forfeit to Government the sum of rupees \_\_\_\_\_

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Signature)

FORM No. 30  
SPECIAL SUMMONS TO A PERSON ACCUSED OF A PETTY OFFENCE

(See section 206)

To,

\_\_\_\_\_ (*Name of the accused*)

of \_\_\_\_\_ (*address*)

WHEREAS your attendance is necessary to answer a charge of a petty offence (*state shortly the offence charged*), you are hereby required to appear in person (*or by pleader*) before \_\_\_\_\_ (Magistrate) of \_\_\_\_\_ on the \_\_\_\_\_ day of \_\_\_\_\_ 19 \_\_\_\_, or if you desire to plead guilty to the charge without appearing before the Magistrate, to transmit before the aforesaid date the plea of guilty in writing and the sum of \_\_\_\_\_ rupees as fine, or if you desire to appear by pleader and to plead guilty through such pleader, to authorise such pleader in writing to make such a plea of guilty on your behalf and to pay the fine through such pleader. Herein fail not.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Seal of the Court)

(Signature)

(Note.-The amount of fine specified in this summons shall not exceed on hundred rupees.)

FORM No. 31  
NOTICE OF COMMITMENT BY MAGISTRATE TO PUBLIC PROSECUTOR

(See section 209)

The Magistrate of \_\_\_\_\_ hereby gives notice that he has committed one \_\_\_\_\_ for trial at the next Sessions; and the Magistrate hereby instructs the Public Prosecutor to conduct the prosecution of the said case.

The charge against the accused is that, \_\_\_\_\_ etc. (*state the offence as in the charge*)

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 32

CHARGES

(See sections 211, 212 and 213)

I. CHARGES WITH ONE-HEAD

(1) (a) I, \_\_\_\_\_, (name and office of Magistrate, etc.),  
hereby charge you \_\_\_\_\_ (name of accused person) as follows:—

(b) **On section 121**—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, waged war against the Government of India and thereby committed an offence punishable under section 121 of the Indian Penal Code, and within the cognizance of this Court.

(c) And I hereby direct that you be tried by this Court on the said charge.

(Signature and seal of the Magistrate)

[To be substituted for (b)]:—

(2) **On section 124**—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, with the intention of inducing the President of India [or, as the case may be, the Governor of \_\_\_\_\_ (name of State)] to refrain from exercising a lawful power as such President (or, as the case may be, the Government) assaulted President (or, as the case may be, the Governor), and thereby committed an offence punishable under section 124 of the Indian Penal Code, and within the cognizance of this Court.

(3) **On section 161**—That you, being a public servant in the \_\_\_\_\_ Department, directly accepted from \_\_\_\_\_ (state the name) for another party \_\_\_\_\_ (state the name) gratification other than legal remuneration, as a motive for forbearing to do an official act, and thereby committed an offence punishable under section 161 of the Indian Penal Code, and within the cognizance of this Court.

(4) **On section 166**—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, did (or omitted to do, as the case may be) \_\_\_\_\_, such conduct being contrary to the provisions of \_\_\_\_\_ Act \_\_\_\_\_, section \_\_\_\_\_, and known by you to be prejudicial to \_\_\_\_\_, and thereby committed an offence punishable under section 166 of the Indian Penal Code, and within the cognizance of this Court.

(5) **On section 193**—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, in the course of the trial of \_\_\_\_\_ before \_\_\_\_\_, stated in evidence that “\_\_\_\_\_” which statement you either knew or believed to be false, or did not believe to be true, and thereby committed an offence punishable under section 193 of the Indian Penal Code, and within the cognizance of this Court.

(6) **On section 304**—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, committed culpable homicide not amounting to murder, causing the death of \_\_\_\_\_, and thereby committed an offence punishable under section 304 of the Indian Penal Code, and within the cognizance of this Court.

(7) **On section 306**—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, abetted the commission of suicide by A.B., a person in a state of intoxication, and thereby committed an offence punishable under section 306 of the Indian Penal Code, and within the cognizance of this Court.

(8) **On section 325**—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, voluntarily caused grievous hurt to \_\_\_\_\_, and thereby committed an offence punishable under section 325 of the Indian Penal Code, and within the cognizance of this Court.

(9) **On section 392**—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, robbed \_\_\_\_\_ (state the name), and thereby committed an offence punishable under section 392 of the Indian Penal Code, and within the cognizance of this Court.

(10) **On section 395**—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, committed dacoity, an offence punishable under section 395 of the Indian Penal Code, and within the cognizance of this Court.

## II. CHARGES WITH TWO OR MORE HEADS

(1) (a) I, \_\_\_\_\_ (*name and office of Magistrate, etc.*), hereby charge you \_\_\_\_\_ (*name of accused person*) as follows:—

(b) **On section 241**—*First*—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, knowing a coin to be counterfeit, delivered the same to another person, by name, A.B., as genuine, and thereby committed an offence punishable under section 241 of the Indian Penal Code, and within the cognizance of the Court of Session.

*Secondly*—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, knowing a coin to be counterfeit attempted to induce another person, by name, A.B., to receive it as genuine, and thereby committed an offence punishable under section 241 of the Indian Penal Code, and within the cognizance of the Court of Session.

(c) And I hereby direct that you be tried by the said Court on the said charge.

(*Signature and seal of the Magistrate*)

[*To be substituted for (b)*]:—

(2) **On sections 302 and 304**—*First*—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, committed murder by causing the death of \_\_\_\_\_, and thereby committed an offence punishable under section 302 of the Indian Penal Code, and within the cognizance of the Court of Session.

*Secondly*—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, by causing the death of \_\_\_\_\_, committed culpable homicide not amounting to murder, and thereby committed an offence punishable under section 304 of the Indian Penal Code, and within the cognizance of the Court of Session.

(3) **On sections 379 and 382**—*First*—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, committed theft, and thereby committed an offence punishable under section 379 of the Indian Penal Code, and within the cognizance of the Court of Session.

*Secondly*—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, committed theft, having made preparation for causing death to a \_\_\_\_\_ person in order to the committing of such theft, and thereby committed an offence punishable under section 382 of the Indian Penal Code, and within the cognizance of the Court of Session.

*Thirdly*—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, committed theft, having made preparation for causing restraint to a person in order to the effecting of your escape after the committing of such theft, and thereby committed an offence punishable under section 382 of the Indian Penal Code, and within the cognizance of the Court of Session.

*Fourthly*—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, committed theft, having made preparation for causing fear of hurt to a person in order to the restraining of property taken by such theft and thereby committed an offence punishable under section 382 of the Indian Penal Code, and within the cognizance of the Court of Session.

(4) **Alternative charge on section 193**—That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, in the course of the inquiry into \_\_\_\_\_, before \_\_\_\_\_, stated in evidence that “\_\_\_\_\_, and that you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, in the course of the trial of \_\_\_\_\_, before \_\_\_\_\_, stated in the evidence that “\_\_\_\_\_, one of which statements you either knew or believed to be false, or did not believe to be true, and thereby committed an offence punishable under section 193 of the Indian Penal Code, and within the cognizance of the Court of Session.

(*In cases tried by Magistrates substitute “within my cognizance” for “within the cognizance of the Court of Session”.*)

### III. CHARGES FOR THEFT AFTER PREVIOUS CONVICTION

I, \_\_\_\_\_ (name and office of Magistrate, etc.)  
hereby charge you \_\_\_\_\_ (name of accused person) as follows: —

That you, on or about the \_\_\_\_\_ day of \_\_\_\_\_, at \_\_\_\_\_, committed theft, and thereby committed an offence punishable under section 379 of the Indian Penal Code, and within the cognizance of the Court of Session (or Magistrate, as the case may be). And you, the said (name of accused), stand further charged that you, before the committing of the said offence, that is to say, on the day of \_\_\_\_\_, had been convicted by the \_\_\_\_\_ (state Court by which conviction was had) at \_\_\_\_\_ of an offence punishable under Chapter XVII of the Indian Penal Code with imprisonment for a term of three years, that is to say, the offence of house-breaking by night \_\_\_\_\_ (describe the offence in the words used in the section under which the accused was convicted), which conviction is still in full force and effect, and that you are thereby liable to enhanced punishment under section 75 of the Indian Penal Code.

And I hereby direct that you be tried, etc.

#### FORM No. 33

##### SUMMONS TO WITNESS

(See sections 61 and 244)

To \_\_\_\_\_ of \_\_\_\_\_  
WHEREAS complaint has been made before me that \_\_\_\_\_ (name of the accused) of \_\_\_\_\_ (address) has (or is suspected to have) committed the offence of \_\_\_\_\_ (state the offence concisely with time and place), and it appears to me that you are likely to give material evidence or to produce any document or other thing for the prosecution;

You are hereby summoned to appear before this Court on the \_\_\_\_\_ day of \_\_\_\_\_ next at ten o'clock in the forenoon, to produce such document or thing or to testify what you know concerning the matter of the said complaint, and not to depart thence without leave of the Court; and you are hereby warned that, if you shall without just excuse neglect or refuse to appear on the said date, a warrant will be issued to compel your attendance.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_ .  
(Seal of the Court) \_\_\_\_\_ (Signature)

#### FORM No. 34

WARRANT OF COMMITMENT ON A SENTENCE OF IMPRISONMENT OR FINE IF PASSED BY A <sup>1</sup>[COURT]  
<sup>2</sup>[(See sections 235, 248 and 255)]

To the Officer in charge of Jail at \_\_\_\_\_

WHEREAS on the \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_ (name of the prisoner), the (1st, 2nd, 3rd, as the case may be) prisoner in case No. \_\_\_\_\_ of the Calendar for 19\_\_\_\_, was convicted before me \_\_\_\_\_ (name and official designation) of the offence of \_\_\_\_\_ (mention the offence or offences concisely) under section (or sections) \_\_\_\_\_ of the Indian Penal Code (or of \_\_\_\_\_ Act \_\_\_\_\_), and was sentenced to \_\_\_\_\_ (state the punishment fully and distinctly);

This is to authorise and require you to receive the said \_\_\_\_\_ (prisoner's name) into your custody in the said Jail, together with this warrant, and thereby carry the aforesaid sentence into execution according to law.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_ .  
(Seal of the Court) \_\_\_\_\_ (Signature)

1. Subs. by Act 45 of 1978, s. 35, for "MAGISTRATE".

2. Subs. by s. 35, *ibid*, for "(See sections 248 and 355)" (w.e.f. 18-12-1978).

FORM No. 35

WARRANT OF IMPRISONMENT ON FAILURE TO PAY COMPENSATION

(See section 250)

To the Officer in charge of Jail at

WHEREAS (name and description) has brought against (name and description of the accused person) the complaint that (mention it concisely) and the same has been dismissed on the ground that there was no reasonable ground for making the accusation against the said (name) and the order of dismissal awards payment by the said (name of complainant) of the sum of rupees as compensation; and whereas the said sum has not been paid and an order has been made for his simple imprisonment in Jail for the period of days, unless the aforesaid sum be sooner paid;

This is to authorise and require you to receive the said (name) into your custody, together with this warrant, and him safely to keep in the said Jail for the said period of (term of imprisonment), subject to the provisions of section 69 of the Indian Penal Code, unless the said sum be sooner paid, and on the receipt thereof, forthwith to set him at liberty, returning this warrant with an endorsement certifying the manner of its execution.

Dated, this day of ,19 .

(Seal of the Court)

(Signature)

FORM No. 36

ORDER REQUIRING PRODUCTION IN COURT OF PERSON IN PRISON FOR ANSWERING TO CHARGE OF OFFENCE

(See section 267)

To the Officer in charge of Jail at

WHEREAS the attendance of (name of prisoner) at present confined/detained in the above-mentioned prison, is required in this Court to answer to a charge of (state shortly the offence charged) or for the purpose of a proceeding (state shortly the particulars of the proceeding);

You are hereby required to produce the said under safe and sure conduct before this Court at on the day of , 19 , by A.M. there to answer to the said charge, or for the purpose of the said proceeding, and after this Court has dispensed with his further attendance, cause him to be conveyed under safe and sure conduct back to the said prison.

And you are further required to inform the said of the contents of this order and deliver to him the attached copy thereof.

Dated, this day of ,19 .

(Seal of the Court)

(Signature)

Countersigned.

(Seal)

(Signature)

FORM No. 37

ORDER REQUIRING PRODUCTION IN COURT OF PERSON IN PRISON FOR GIVING EVIDENCE

(See section 267)

To the Officer in charge of the Jail at

WHEREAS complaint has been made before this Court that \_\_\_\_\_ (*name of the accused*) of has committed the offence of \_\_\_\_\_ (*state offence concisely with time and place*) and it appears that \_\_\_\_\_ (*name of prisoner*) at present confined/detained in the above-mentioned prison, is likely to give material evidence for the prosecution/defence;

You are hereby required to produce the said \_\_\_\_\_ under safe and sure conduct before this Court at \_\_\_\_\_ on the \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_, by \_\_\_\_\_ A.M. there to give evidence in the matter now pending before this Court, and after this Court has dispensed with his further attendance, cause him to be conveyed under safe and sure conduct back to the said prison;

And you are further required to inform the said \_\_\_\_\_ of the contents of this order and deliver to him the attached copy thereof.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_.

(Seal of the Court)

(Signature)

Countersigned.

(Seal)

(Signature)

FORM No. 38

WARRANT OF COMMITMENT IN CERTAIN CASES OF CONTEMPT WHEN A FINE IS IMPOSED

(See section 345)

To the Officer in charge of the Jail at

WHEREAS at a Court held before me on this day \_\_\_\_\_ (*name and description of the offender*) in the presence (or view) of the Court committed wilful contempt;

And whereas for such contempt the said \_\_\_\_\_ (*name of the offender*) has been adjudged by the Court to pay a fine of rupees \_\_\_\_\_, or in default to suffer simple imprisonment for the period of \_\_\_\_\_ (*state the number of months or days*);

This is to authorise and require you to receive the said \_\_\_\_\_ (*name of the offender*) into your custody, together with this warrant, and him safely to keep in the said Jail for the said period of \_\_\_\_\_ (*term of imprisonment*), unless the said fine be sooner paid; and, on the receipt thereof, forthwith to set him at liberty, returning this warrant with an endorsement certifying the manner of its execution.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 39

MAGISTRATE'S OR JUDGE'S WARRANT OF COMMITMENT OF WITNESS REFUSING TO ANSWER OR TO  
PRODUCE DOCUMENT

(See section 349)

To

(name and designation of officer of Court)

WHEREAS

(name and description),

being summoned (or brought before this Court) as a witness and this day required to give evidence on an inquiry into an alleged offence, refused to answer a certain question (or certain questions) put to him touching the said alleged offence, and duly recorded, or having been called upon to produce any document has refused to produce such document, without alleging any just excuse for such refusal, and for his refusal has been ordered to be detained in custody for (term of detention adjudged);

This is to authorise and require you to take the said (name) into custody, and him safely to keep in your custody for the period of days, unless in the meantime he shall consent to be examined and to answer the questions asked of him, or to produce the document called for from him, and on the last of the said days, or forthwith on such consent being known, to bring him before this Court to be dealt with according to law, returning this warrant with an endorsement certifying the manner of its execution.

Dated, this day of , 19 .

(Seal of the Court)

(Signature)

FORM No. 40

WARRANT OF COMMITMENT UNDER SENTENCE OF DEATH

(See section 366)

To the Officer in charge of the Jail at

WHEREAS at the Session held before me on the day of , 19 , (name of prisoner), the (1st, 2nd, 3rd, as the case may be), prisoner in case No. of the Calendar for 19 at the said Session, was duly convicted of the offence of culpable homicide amounting to murder under section of the Indian Penal Code, and sentenced to death, subject to the confirmation of the said sentence by the Court of ;

This is to authorise and require you to receive the said (prisoner's name) into your custody in the said Jail, together with this warrant, and him there safely to keep until you shall receive the further warrant or order of this Court, carrying into effect the order of the said Court.

Dated, this day of , 19 .

(Seal of the Court)

(Signature)



FORM No. 41

WARRANT AFTER A COMMUTATION OF A SENTENCE

<sup>1</sup>[(See sections 386, 413 and 416)]

To the Officer in charge of the Jail at

WHEREAS at a Session held on the \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_, \_\_\_\_\_ (name of the prisoner), the (1st, 2nd, 3rd, as the case may be) prisoner in case No. \_\_\_\_\_ of the Calendar for 19\_\_\_\_ at the said Session, was convicted of the offence of \_\_\_\_\_, punishable under section \_\_\_\_\_ of the Indian Penal Code, and sentenced to \_\_\_\_\_, and was thereupon committed to your custody; and whereas by the order of the \_\_\_\_\_ Court of \_\_\_\_\_ (a duplicate of which is hereunto annexed) the punishment adjudged by the said sentence has been commuted to the punishment of imprisonment for life;

This is to authorise and require you safely to keep the said \_\_\_\_\_ (prisoner's name) in your custody in the said Jail, as by law is required, until he shall be delivered over by you to the proper authority and custody for the purpose of his undergoing the punishment of imprisonment for life under the said order,

or

if the mitigated sentence is one of imprisonment, say, after the words "custody in the said Jail", "and there to carry into execution the punishment of imprisonment under the said order according to law".

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 42

WARRANT OF EXECUTION OF A SENTENCE OF DEATH

<sup>2</sup>[(See sections 413 and 414)]

To the Officer in charge of the Jail at

WHEREAS \_\_\_\_\_ (name of the prisoner), the (1st, 2nd, 3rd, as the case may be) Prisoner in case No. \_\_\_\_\_ of the Calendar for 19\_\_\_\_ at the Session held before me on the \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_, has been by a warrant of the Court, dated the \_\_\_\_\_ day of \_\_\_\_\_, committed to your custody under sentence of death; \_\_\_\_\_ and whereas the order of the High Court at \_\_\_\_\_ confirming the said sentence has been received by this Court;

This is to authorise and require you to carry the said sentence into execution by causing the said \_\_\_\_\_ to be hanged by the neck until he be dead, at \_\_\_\_\_ (time and place of execution), and to return this warrant to the Court with an endorsement certifying that the sentence has been executed.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_.

(Seal of the Court)

(Signature)

1. Subs. by Act 45 of 1978, s. 35 for "(See section 386)" (w.e.f. 18-12-1978).

2. Subs. by s. 35, *ibid.*, for "(See section 414)" (w.e.f. 18-12-1978).

FORM No. 43

WARRANT TO LEVY A FINE BY ATTACHMENT AND SALE

(See section 421)

To

(name and designation of the police officer or other person or persons who is or are to execute the warrant).

WHEREAS (name and description of the offender) was on the                      day of                      , 19                      , convicted before me of the offence of                      (mention the offence concisely), and sentenced to pay a fine of rupees                      ; and whereas the said                      (name), although required to pay the said fine, has not paid the same or any part thereof;

This is to authorize and require you to attach any movable property belonging to the said                      (name), which may be found within the district of                      ; and, if within                      (state the number of days or hours allowed) next after such attachment the said sum shall not be paid (or forthwith), to sell the movable property attached, or so much thereof as shall be sufficient to satisfy the said fine, returning this warrant, with an endorsement certifying what you have done under it, immediately upon its execution.

Dated, this                      day of                      , 19                      .

(Seal of the Court)

(Signature)

FORM No. 44

WARRANT FOR RECOVERY OF FINE

(See section 421)

To the Collector of the district of

WHEREAS (name, address and description of the offender) was on the                      day of                      , 19                      , convicted before me of the offence of                      (mention the offence concisely), and sentenced to pay a fine of rupees                      ; and

WHEREAS the said                      (name), although require to pay the said fine, has not paid the same or any part of thereof;

You are hereby authorised and requested to realise the amount of the said fine as arrears of land revenue from the movable or immovable property, or both, of the said                      (name) and to certify without delay what you have done in pursuance of this order.

Dated, this                      day of                      , 19                      .

(Seal of the Court)

(Signature)

<sup>1</sup>[FORM No. 44A  
BOND FOR APPEARANCE OF OFFENDER RELEASED PENDING REALISATION OF FINE  
[See section 424 (1) (b)]]

WHEREAS I, \_\_\_\_\_ (*name*) inhabitant of \_\_\_\_\_ (*place*), have been sentenced to pay a fine of rupees \_\_\_\_\_ and in default of payment thereof to undergo imprisonment for \_\_\_\_\_; and whereas the Court has been pleased to order my release on condition of my executing a bond for my appearance on the following date (*or dates*), namely:—

I hereby bind myself to appear before the Court of \_\_\_\_\_ at \_\_\_\_\_ o'clock on the following date (*or dates*), namely:—  
and, in case of making default herein, I bind myself to forfeit to Government the sum of rupees.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(*Signature*)

WHERE A BOND WITH SURETIES IS TO BE EXECUTED, ADD—

We do hereby declare ourselves sureties for the above-named that he will appear before the Court of \_\_\_\_\_ on the following date (*or dates*), namely:—

And, in case of his making default therein, we bind ourselves jointly and severally to forfeit to Government the sum of rupees.

(*Signature*).]

FORM No. 45  
BOND AND BAIL-BOND FOR ATTENDANCE BEFORE OFFICER IN CHARGE OF POLICE STATION OR COURT  
[See sections 436, <sup>2</sup>[436A,] 437, <sup>3</sup>[437A,] 438 (3) and 441]

I, \_\_\_\_\_ (*name*), of \_\_\_\_\_ (*place*), having been arrested or detained without warrant by the Officer in charge of \_\_\_\_\_ police station (*or having been brought before the Court of* \_\_\_\_\_), charged with the offence of \_\_\_\_\_, and required to give security for my attendance before such Officer of Court on condition that I shall attend such Officer or Court on every day on which any investigation or trial is held with regard to such charge, and in case of my making default herein, I bind myself to forfeit to Government the sum of rupees.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(*Signature*)

I hereby declare myself (*or we jointly and severally declare ourselves and each of us*) surety (*or sureties*) for the above said \_\_\_\_\_ (*name*) that he shall attend the Officer in charge of \_\_\_\_\_ police station or the Court of \_\_\_\_\_ on every day on which any investigation into the charge is made or any trial on such charge is held, that he shall be, and appear, before such Officer or Court for the purpose of such investigation or to answer the charge against him (as the case may be), and, in case of his making default herein, I hereby bind myself (*or we, hereby bind ourselves*) to forfeit to Government the sum of \_\_\_\_\_ rupees.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(*Signature*)

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1. Ins. by Act 45 of 1978, s. 35 (w.e.f. 18-12-1978).

2. Ins. by Act 25 of 2005, s. 43 (w.e.f. 23-6-2006).

3. Ins. by Act 5 of 2009, s. 32 (w.e.f. 31-12-2009).

FORM No. 46

WARRANT TO DISCHARGE A PERSON IMPRISONED ON FAILURE TO GIVE SECURITY

(See section 442)

To the Officer in charge of the Jail at  
(or other officer in whose custody the person is)

WHEREAS (name and description of prisoner) was committed to your custody under warrant of this Court, dated the day of , and has since with his surety (or sureties) duly executed a bond under section 441 of the Code of Criminal Procedure;

This is to authorise and require you forthwith to discharge the said (name) from your custody, unless he is liable to be detained for some other matter.

Dated, this day of , 19 .

(Seal of the Court)

(Signature)

<sup>1</sup>[FORM No. 47

WARRANT OF ATTACHMENT TO ENFORCE A BOND

(See section 446)

To the Police Officer in charge of the police station at

WHEREAS (name, description and address of person) has failed to appear on (mention the occasion) pursuant to his recognizance, and has by default forfeited to Government the sum of rupees (the penalty in the bond); and whereas the said (name of person) has, on due notice to him, failed to pay the said sum or show any sufficient cause why payment should not be enforced against him;

This is to authorise and require you to attach any movable property of the said (name) that you may find within the district of , by seizure and detention, and, if the said amount be not paid within , days to sell the property so attached or so much of it as may be sufficient to realise the amount aforesaid, and to make return of what you have done under this warrant immediately upon its execution.

Dated, this day of , 19 .

(Seal of the Court)

(Signature)]

<sup>1</sup> Ins. by Act 45 of 1978, s. 35 (w.e.f. 18-12-1978).

FORM No. 48  
NOTICE TO SURETY ON BREACH OF A BOND  
(See section 446)

To \_\_\_\_\_ of \_\_\_\_\_

WHEREAS on the \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_, you became surety for \_\_\_\_\_ (name) of \_\_\_\_\_ (place) that he should appear before this Court on the \_\_\_\_\_ day of \_\_\_\_\_ and bound yourself in default thereof to forfeit the sum of rupees \_\_\_\_\_ to Government; and whereas the said \_\_\_\_\_ (name) has failed to appear before this Court and by reason of such default you have forfeited the aforesaid sum of rupees.

You are hereby required to pay the said penalty or show cause, within \_\_\_\_\_ days from this date, why payment of the said sum should not be enforced against you.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 49  
NOTICE TO SURETY OF FORFEITURE OF BOND FOR GOOD BEHAVIOUR  
(See section 446)

To \_\_\_\_\_ of \_\_\_\_\_

WHEREAS on the \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_, you became surety by a bond for \_\_\_\_\_ (name) of \_\_\_\_\_ (place) that he would be of good behaviour for the period of \_\_\_\_\_ and bound yourself in default thereof to forfeit the sum of rupees \_\_\_\_\_ to Government; and whereas the said \_\_\_\_\_ (name) has been convicted of the offence of \_\_\_\_\_ (mention the offence concisely) committed since you became such surety, whereby your security bond has become forfeited;

You are hereby required to pay the said penalty of rupees \_\_\_\_\_ or to show cause within \_\_\_\_\_ days why it should not be paid.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19\_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 50

WARRANT OF ATTACHMENT AGAINST A SURETY

(See section 446)

To \_\_\_\_\_ of \_\_\_\_\_

WHEREAS \_\_\_\_\_ (*name, description and address*) has bound himself  
as surety for the appearance of \_\_\_\_\_ (*mention the condition of the bond*) and  
the said \_\_\_\_\_ (*name*) has made default, and thereby forfeited to Government  
the sum of rupees \_\_\_\_\_ (*the penalty in the bond*);

This is to authorise and require you to attach any movable property of the said \_\_\_\_\_ (*name*)  
which you may find within the district of \_\_\_\_\_, by seizure and detention; and, if the  
said amount be not paid within \_\_\_\_\_ days, to sell the property so attached, or so much of it  
as may be sufficient to realise the amount aforesaid, and make return of what you have done under this  
warrant immediately upon its execution.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 51

WARRANT OF COMMITMENT OF THE SURETY OF AN ACCUSED PERSON ADMITTED TO BAIL

(See section 446)

To the Superintendent (or Keeper) of the Civil Jail at \_\_\_\_\_

WHEREAS \_\_\_\_\_ (*name and description of surety*) has bound  
himself as a surety for the appearance of \_\_\_\_\_ (*state the condition of the bond*)  
and the said \_\_\_\_\_ (*name*) has therein made default whereby the penalty mentioned in the  
said bond has been forfeited to Government; and whereas the said \_\_\_\_\_ (*name of surety*) has,  
on due notice to him, failed to pay the said sum or show any sufficient cause why payment should not be  
enforced against him, and the same cannot be recovered by attachment and sale of his movable property,  
and an order has been made for his imprisonment in the Civil Jail for \_\_\_\_\_ (*Specify the period*);

This is to authorise and require you, the said Superintendent \_\_\_\_\_ (or Keeper) to  
receive the said \_\_\_\_\_ (*name*) into your custody with the warrant and to keep him safely  
in the said Jail for the said \_\_\_\_\_ (*term of imprisonment*), and to return this warrant with an  
endorsement certifying the manner of its execution.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 52

NOTICE TO THE PRINCIPAL OF FORFEITURE OF BOND TO KEEP THE PEACE

(See section 446)

To (name, description and address)

WHEREAS on the                      day of                      , 19                      , you entered into a bond not to commit, etc.,                      (as in the bond), and proof of the forfeiture of the same has been given before me and duly recorded;

You are hereby called upon to pay the said penalty of rupees                      or to show cause before me within                      days why payment of the same should not be enforced against you.

Dated, this                      day of                      , 19                      .

(Seal of the Court)

(Signature)

FORM No. 53

WARRANT TO ATTACH THE PROPERTY OF THE PRINCIPAL ON BREACH OF A BOND TO KEEP THE PEACE

(See section 446)

To

(name and designation of police officer), at the police station of

WHEREAS                      (name and description) did, on the                      day of                      , 19                      , enter into a bond for the sum of rupees                      binding himself not to commit a breach of the peace, etc.,                      (as in the bond), and proof of the forfeiture of the said bond has been given before me and duly recorded; and whereas notice has been given to the said                      (name) calling upon him to show cause why the said sum should not be paid, and he has failed to do so or to pay the said sum;

This is to authorise and require you to attach by seizure movable property belonging to the said                      (name) to the value of rupees                      , which you may find within the district of                      , and, if the said sum be not paid within                      , to sell the property so attached, or so much of it as may be sufficient to realize the same; and to make return of what you have done under this warrant immediately upon its execution.

Dated, this                      day of                      , 19                      .

(Seal of the Court)

(Signature)

FORM No. 54

WARRANT OF IMPRISONMENT ON BREACH OF A BOND TO KEEP THE PEACE

(See section 446)

To the Superintendent (or Keeper) of the Civil Jail at

WHEREAS proof has been given before me and duly recorded that \_\_\_\_\_ (*name and description*) has committed a breach of the bond entered into by him to keep the peace, whereby he has forfeited to Government the sum of rupees \_\_\_\_\_; and whereas the said \_\_\_\_\_ (*name*) has failed to pay the said sum or to show cause why the said sum should not be paid, although duly called upon to do so, and payment thereof cannot be enforced by attachment of his movable property, and an order has been made for the imprisonment of the said \_\_\_\_\_ (*name*) in the Civil Jail of the period of \_\_\_\_\_ (*term of imprisonment*);

This is to authorise and require you, the said Superintendent \_\_\_\_\_ (or Keeper) of the said Civil Jail to receive the said \_\_\_\_\_ (*name*) into your custody, together with this warrant, and to keep him safely in the said Jail for the said period of \_\_\_\_\_ (*term of imprisonment*), and to return this warrant with an endorsement certifying the manner of its execution.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_\_.

(Seal of the Court)

(Signature)

FORM No. 55

WARRANT OF ATTACHMENT AND SALE ON FORFEITURE OF BOND FOR GOOD BEHAVIOUR

(See section 446)

To the Police Officer in charge of the police station at

WHEREAS \_\_\_\_\_ (*name, description and address*) did, on the \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_\_, give security by bond in the sum of rupees \_\_\_\_\_ for the good behaviour of \_\_\_\_\_ (*name, etc., of the principal*), and proof has been given before me and duly recorded of the commission by the said \_\_\_\_\_ (*name*) of the offence of whereby the said bond has been forfeited; and whereas notice has been given to the said \_\_\_\_\_ (*name*) calling upon him to show cause why the said sum should not be paid, and he has failed to do so to pay the said sum;

This is to authorise and require you to attach by seizure movable property belonging to the said \_\_\_\_\_ (*name*) to the value of rupees \_\_\_\_\_ which you may find within the district of \_\_\_\_\_, and, if the said sum be not paid within \_\_\_\_\_, to sell the property so attached, or so much of it as may be sufficient to realise the same, and to make return of what you have done under this warrant immediately upon its execution.

Dated, this \_\_\_\_\_ day of \_\_\_\_\_, 19 \_\_\_\_\_.

(Seal of the Court)

(Signature)



FORM No. 56

WARRANT OF IMPRISONMENT ON FORFEITURE OF BOND FOR GOOD BEHAVIOUR

(See section 446)

To the Superintendent (or Keeper) of the Civil Jail at

WHEREAS (name, description and address) did, on the day of , 19 , give security by bond in the sum of rupees for the good behaviour of (name, etc., of the principal), and proof of the breach of the said bond has been given before me and duly recorded, whereby the said (name) has forfeited to Government the sum of rupees , and whereas he has failed to pay the said sum or to show cause why the said sum should not be paid although duly called upon to do so, and payment thereof cannot be enforced by attachment of his movable property, and an order has been made for the imprisonment of the said (name) in the Civil Jail for the period of (term of imprisonment);

This is to authorise and require you, the Superintendent (or Keeper), to receive the said (name) into your custody, together with this warrant, and to keep him safely in the said Jail for the said period of (term of imprisonment), returning this warrant with an endorsement certifying the manner of its execution.

Dated, this day of , 19 .

(Seal of the Court)

(Signature)

\_\_\_\_\_

STATE AMENDMENT

**Andhra Pradesh**

Amendment of Form No. 45 in the Second Schedule. — In the Principal Act, in the Second Schedule, in Form No. 45, in paragraph 2, after the words, “to forfeit to Government the sum of rupees” the following words shall be added namely:—

“and I shall pay the fine imposed by the court in case I fail to produce the accused on the date fixed by the court.”

[Vide Andhra Pradesh Act 17 of 2019 s. 3]

## APPENDIX

### EXTRACTS FROM THE CODE OF CRIMINAL PROCEDURE (AMENDMENT) ACT, 2005

No. 25 OF 2005

[23rd June, 2005.]

An Act further to amend the Code of Criminal Procedure, 1973.

BE it enacted by Parliament in the Fifty-sixth Year of the Republic of India as follows:—

**1. Short title and commencement.**—(1) This Act may be called the Code of Criminal Procedure (Amendment) Act, 2005.

(2) Save as otherwise provided in this Act, it shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint <sup>1</sup>[; and different dates\* may be appointed for different provisions of this Act.]

\* \* \* \* \*

**16. Insertion of new section 144A.**—In Chapter X of the principal Act, under sub-heading “C.—*Urgent cases of nuisance or apprehended danger*”, after section 144, the following section shall be inserted, namely:—

**‘144A. Power to prohibit carrying arms in procession or mass drill or mass training with arms.**—(1) The District Magistrate may, whenever he considers it necessary so to do for the preservation of public peace or public safety or for the maintenance of public order, by public notice or by order, prohibit in any area within the local limits of his jurisdiction, the carrying of arms in any procession or the organising or holding of, or taking part in, any mass drill or mass training with arms in any public place.

(2) A public notice issued or an order made under this section may be directed to a particular person or to persons belonging to any community, party or organisation.

(3) No public notice issued or an order made under this section shall remain in force for more than three months from the date on which it is issued or made.

(4) The State Government may, if it considers necessary so to do for the preservation of public peace or public safety or for the maintenance of public order, by notification, direct that a public notice issued or order made by the District Magistrate under this section shall remain in force for such further period not exceeding six months from the date on which such public notice or order was issued or made by the District Magistrate would have, but for such direction, expired, as it may specify in the said notification.

(5) The State Government may, subject to such control and directions as it may deem fit to impose, by general or special order, delegate its powers under sub-section (4) to the District Magistrate.

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1. Ins. by Act 25 of 2006, s. 2 (w.e.f. 2-6-2006).

\* 23-6-2006, *vide* Notification No.S.O. 923(E) dated 21-6-2006 [Except the Provisions of Section 16, 25, 28(a), 28(b), 38, 42(a), 42(b), 42(f)(iii) and (iv) and 44(a)].

*Explanation.*—The word “arms” shall have the meaning assigned to it in section 153AA of the Indian Penal Code (45 of 1860).’.

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**28. Amendment of section 320.**—In section 320 of the principal Act, in the Table under sub-section (2),—

(a) the words “Voluntarily causing hurt by dangerous weapons or means” in column 1 and the entries relating thereto in columns 2 and 3 shall be omitted;

(b) in column 3, for the word “Ditto”, against the entry relating to section 325, the words “The person to whom the hurt is caused” shall be substituted.

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**38. Amendment of section 438.**—In section 438 of the principal Act, for sub-section (1), the following sub-sections shall be substituted, namely:—

“(1) Where any person has reason to believe that he may be arrested on accusation of having committed a non-bailable offence, he may apply to the High Court or the Court of Session for a direction under this section that in the event of such arrest he shall be released on bail; and that Court may, after taking into consideration, *inter alia*, the following factors, namely:—

(i) the nature and gravity of the accusation;

(ii) the antecedents of the applicant including the fact as to whether he has previously undergone imprisonment on conviction by a Court in respect of any cognizable offence;

(iii) the possibility of the applicant to flee from justice; and

(iv) where the accusation has been made with the object of injuring or humiliating the applicant by having him so arrested,

either reject the application forthwith or issue an interim order for the grant of anticipatory bail:

Provided that, where the High Court or, as the case may be, the Court of Session, has not passed any interim order under this sub-section or has rejected the application for grant of anticipatory bail, it shall be open to an officer in-charge of a police station to arrest, without warrant the applicant on the basis of the accusation apprehended in such application.

(1A) Where the Court grants an interim order under sub-section (1), it shall forthwith cause a notice being not less than seven days notice, together with a copy of such order to be served on the Public Prosecutor and the Superintendent of Police, with a view to give the Public Prosecutor a reasonable opportunity of being heard when the application shall be finally heard by the Court.

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1. S. 25 omitted by Act 2 of 2006, s. 8 (w.e.f. 16-4-2006).

(1B) The presence of the applicant seeking anticipatory bail shall be obligatory at the time of final hearing of the application and passing of final order by the Court, if on an application made to it by the Public Prosecutor, the Court considers such presence necessary in the interest of justice.”.

\* \* \* \* \*

**42. Amendment of the First Schedule.**—In the First Schedule to the principal Act, under the heading “I.—OFFENCES UNDER THE INDIAN PENAL CODE”,—

(a) after the entries relating to section 153A, the following entries shall be inserted, namely:—

| 1      | 2                                                                                                                              | 3                                                  | 4     | 5     | 6                 |
|--------|--------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------|-------|-------|-------------------|
| “153AA | Knowingly carrying arms in any procession or organising or holding or taking part in any mass drill or mass training with arms | Imprisonment for 6 months and fine of 2,000 rupees | Ditto | Ditto | Any Magistrate.”; |

(b) in the 6th column, in the entries relating to section 153B, for the word “Ditto”, the words “Magistrate of the first class” shall be substituted;

\* \* \* \* \*

(f) in the 5th column, in the entries relating to—

\* \* \* \* \*

(iii) section 324, for the word “Ditto”, the word “Non-bailable” shall be substituted;

(iv) section 325, for the word “Ditto”, the word “Bailable” shall be substituted.

\* \* \* \* \*

**44. Amendment of Act 45 of 1860.**—In the Indian Penal Code,—

(a) after section 153A, the following section shall be inserted, namely:—

**‘153AA. Punishment for knowingly carrying arms in any procession or organising, or holding or taking part in any mass drill or mass training with arms.**—Whoever knowingly carries arms in any procession or organizes or holds or takes part in any mass drill or mass training with arms in any public place in contravention of any public notice or order issued or made under section 144A of the Code of Criminal Procedure, 1973 (2 of 1974) shall be punished with imprisonment for a term which may extend to six months and with fine which may extend to two thousand rupees.

*Explanation.*—“Arms” means articles of any description designed or adapted as weapons for offence or defence and includes fire arms, sharp edged weapons, lathis, *dandas* and sticks.’.

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